

Leamington Corporation Act, 1952

15 & 16 GEO. 6 & 1 ELIZ. 2 Ch. xvi

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CHAPTER xvi

An Act to extend the boundaries of the borough of Royal Leamington Spa to confer further powers on the mayor aldermen and burgesses of the borough in relation to lands to make further provision for the improvement health local government and finances of the borough and for other purposes. [9th July 1952.]

WHEREAS—

(1) The borough of Royal Leamington Spa (in this Act called “the borough”) in the county of Warwick is a municipal borough under the government and local management of the mayor aldermen and burgesses of the borough (in this Act called “the Corporation”):

(2) The parish of Whitnash in the rural district of Warwick is situated in the administrative county of Warwick and adjoins the borough:

(3) It is expedient to alter and extend the boundaries of the borough so as to include therein part of the said parish:

(4) By virtue of the Leamington Priors Local Board (Extension of Powers) Act 1868 the Corporation maintain certain premises in the borough known as the Royal Pump Rooms and certain other lands in the neighbourhood thereof and it is expedient to confer further powers upon the Corporation in regard thereto and to amend the said Act of 1868:

(5) It is expedient to make further provision with reference to lands and the health local government and improvement of the borough:

(6) It is expedient to make further provision in regard to the finances of the Corporation:

(7) It is expedient that the other provisions contained in this Act be enacted:

(8) The purposes of this Act cannot be effected without the authority of Parliament:

(9) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I

PRELIMINARY

Short and
collective
titles.

1.—(1) This Act may be cited as the Leamington Corporation Act 1952.

(2) The local Acts as defined in section 4 (Interpretation) of this Act and this Act may be jointly cited as the Leamington Corporation Acts and Orders 1825 to 1952.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Extension of borough.

Part III.—Lands.

Part IV.—Streets.

Part V.—Sanitation and buildings.

Part VI.—Nuisances.

Part VII.—Infectious diseases.

Part VIII.—Parks cemeteries and other municipal property.

Part IX.—Public order and public safety.

Part X.—Finance rating superannuation etc.

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Incorporation
of Lands
Clauses Acts.

3. The Lands Clauses Acts except sections 127 to 132 (which relate to the sale of superfluous lands) of the Lands Clauses Consolidation Act 1845 and except the provisions with respect to the purchase and taking of lands otherwise than by agreement (so far

as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act:

PART I
—cont.

Provided that the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section.

4.—(1) In this Act the several words and expressions to which meanings are assigned by sections 90 110 and 343 of the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpretation.

(2) In this Act unless the subject or context otherwise requires—

“ the Act of 1929 ” and “ the Act of 1933 ” mean respectively the Local Government Act 1929 and the Local Government Act 1933 ;

“ the Act of 1936 ” means the Public Health Act 1936 ;

“ the Act of 1947 ” means the Town and Country Planning Act 1947 ;

“ the added area ” means the added part of Whitnash ;

“ the added part of Whitnash ” means the part of that parish which is included within the inner edge of the red line on the borough map and “ the excluded part of Whitnash ” means the remaining part of that parish ;

“ the appointed day ” for the purposes of Part I (Preliminary) and Part II (Extension of borough) of this Act means the first day of April nineteen hundred and fifty-three and for the purpose of any other provision in this Act has the meaning assigned to it by section 151 (The appointed day) of this Act ;

“ authorised security ” means any mortgage stock bond or other security which the Corporation are for the time being authorised to grant create or issue or upon or by means of which the Corporation are for the time being authorised to raise money ;

“ the borough ” means before the appointed day the existing borough of Royal Leamington Spa and on or after the appointed day the borough as altered by this Act ;

“ the borough map ” means the map marked “ Borough map ” signed in triplicate by the Right Honourable the Lord Terrington the chairman of the committee of the House of Lords to which the Bill for this Act was referred one copy of which map has been deposited in the office of the Clerk of the Parliaments House of

PART I
—cont.

- Lords one in the Private Bill Office of the House of Commons and one with the town clerk at his office ;
- “classified road” has the meaning assigned to it by section 134 of the Act of 1929 and “unclassified road” means a highway repairable by the inhabitants at large which is not a classified road ;
- “the commission” means the British Transport Commission and any reference to the commission in relation to any functions of the commission which are for the time being delegated to an executive in pursuance of section 5 of the Transport Act 1947 shall be construed as a reference to that executive ;
- “contravention” includes a failure to comply and “contravene” shall be construed accordingly ;
- “the Corporation” means the mayor aldermen and burgesses of the borough ;
- “corporation undertaking” means the water undertaking of the Corporation and any undertaking of the Corporation for the time being existing from which revenue is derived and which is determined by a resolution of the council to be a Corporation undertaking ;
- “the council” means the council of the borough ;
- “the county” means the administrative county of Warwick and “the county council” means the county council of the county ;
- “daily penalty” means a penalty for each day on which an offence is continued after conviction therefor ;
- “the electricity board” means the East Midlands Electricity Board ;
- “enactment” includes an enactment in this Act or in any general or local Act and any order byelaw or regulation for the time being in force within the borough ;
- “existing” in relation to any area altered by this Act means existing immediately before the appointed day ;
- “the existing parish” means the existing parish of Whitnash ;
- “financial year” means a period of twelve months ending on the thirty-first day of March ;
- “food” has the same meaning as in the Food and Drugs Act 1938 ;
- “the gas board” means the West Midlands Gas Board ;
- “the general rate fund” and “the general rate” mean respectively the general rate fund and the general rate of the borough ;

“ the Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 by Part V of the Act of 1947 by the Lands Tribunal Act 1949 and by this Act ;

“ the local Acts ” means the local Acts specified in Part I of the First Schedule to this Act and the Orders specified in Part II of that schedule and so much of the confirmation Acts specified in that Part as relates to those Orders ;

“ the Minister ” means the Minister of Housing and Local Government ;

“ the parish council ” means the parish council of the parish of Whitnash ;

“ revenues ” in relation to the Corporation has the meaning assigned to it by section 218 of the Act of 1933 ;

“ the rural district ” means the rural district of Warwick and “ the rural council ” means the council of that district ;

“ statutory borrowing power ” includes a power of borrowing money conferred on the Corporation by or under any enactment except paragraph (a) of subsection (1) of section 215 of the Act of 1933 ;

“ statutory security ” means any security in which trustees are for the time being authorised by law to invest trust moneys and any mortgage bond debenture debenture stock stock or other security created by a local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation ;

“ the town clerk ” “ the medical officer ” “ the treasurer ” “ the surveyor ” and “ the sanitary inspector ” mean respectively the town clerk the medical officer of health the treasurer the surveyor and any sanitary inspector of the borough.

(3) Except where the context otherwise requires any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

EXTENSION OF BOROUGH

Alteration of boundaries

5. Save as otherwise expressly provided and except so far as Commence- there may be anything in the subject-matter or context incon- ment of Part II sistent therewith this Part of this Act shall come into operation of Act. on the appointed day :

PART II
—cont.

Provided that for the purposes of—

- (a) the preparation of the register of local government electors to be published in the year nineteen hundred and fifty-three ;
- (b) any election under the Act of 1933 for any area consisting in whole or in part of any area affected by this Act held on or after the sixteenth day of March nineteen hundred and fifty-three and proceedings preliminary or relating thereto and the qualification of candidates for election at any such election ; and
- (c) the preparation of any precept or contribution order to be issued or made in respect of any period commencing on or after the appointed day ;

this Part of this Act shall operate from the date of the passing of this Act.

Borough map.

6.—(1) Copies of the borough map certified by the town clerk to be true shall be sent by him as soon as may be after the passing of this Act to the clerk of the county council to the clerk of the rural council to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to the Board of Trade to the Postmaster-General to the Ministers of Housing and Local Government Transport Agriculture and Fisheries and Fuel and Power respectively and to the Boundary Commission for England.

(2) Copies of or extracts from the borough map certified by the town clerk to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of such map so far as it relates to the boundary of any area altered by this Part of this Act.

(3) The borough map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the borough and any such person shall be entitled to a copy of or extract from such map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation.

(4) All fees so received shall be carried to and form part of the general rate fund.

Extension
of borough

7.—(1) The boundary of the existing borough the area whereof is included within the outer edge of the blue line on the borough map shall be altered so as to include the added area.

(2) The boundary of the borough shall be that shown by the inner edge of the red line on the borough map and the whole of the area within that boundary shall be the borough of Royal Leamington Spa.

8.—(1) The added area shall be added to and form part of the parish of Leamington. Alteration of parishes.

(2) The excluded part of Whitnash shall form the parish of Whitnash.

Councillors and other members of local authorities

9. The persons who hold office immediately before the appointed day as mayor aldermen and councillors of the existing borough shall on the appointed day become the mayor aldermen and councillors of the borough and shall respectively retire from office on the day on which they would have retired from office if this Act had not been passed. Existing mayor aldermen and councillors.

10.—(1) This section shall come into operation on the date of the passing of this Act but any scheme or Order in Council made under the provisions hereinafter mentioned as applied by this section shall not take effect until the appointed day except for the purposes of any election of councillors which may be required by such scheme or Order in Council. Alteration of wards.

(2) The council shall not later than the first day of October nineteen hundred and fifty-two or such later date as the Secretary of State may allow present a petition under and in accordance with the provisions of section 25 of the Act of 1933 praying for any of the things mentioned in paragraphs (b) to (e) inclusive of subsection (1) of that section.

(3) Failing presentation by the council of a petition under subsection (2) of this section section 25 of the Act of 1933 shall have effect as if a petition praying for an alteration of the boundaries of the wards of the borough had been presented by the council to Her Majesty and the requirements of subsection (1) of the said section 25 had been complied with and the petition stood referred to the Secretary of State.

(4) For the purposes of this section the provisions of this Act altering the boundaries of the borough shall be deemed to have come into operation on the date of the passing of this Act.

11. For the purposes of the application to the borough of the provisions of paragraph (c) of section 57 of the Act of 1933 the added area shall be deemed to have formed part of the borough during the whole of the twelve months preceding the day of an election to which that section relates. Qualification for election and office.

PART II.
—cont.County
electoral
divisions.

12. Subject to the provisions of the Act of 1933 with respect to the alteration of electoral divisions of the county the following provisions shall have effect:—

- (1) The added area shall be separated from the existing Whitnash Electoral Division of the county and shall be included in the Leamington Fourth Electoral Division of the county:
- (2) The persons who immediately before the appointed day are the county councillors representing respectively the existing Whitnash and Leamington Fourth Electoral Divisions of the county shall continue in office and be deemed to have been elected for the same respective divisions as altered by this Act and shall retire from office on the day on which they would have retired from office if this Act had not been passed.

District
councillors
and
continuance of
rural council.

13. Subject to the provisions of any order which may be made by the county council under the Act of 1933 with respect to rural district councils and rural district councillors—

- (a) the persons who immediately before the appointed day are the rural district councillors for the existing parish shall be deemed to have been elected to represent that parish as altered by this Part of this Act on the rural council and shall retire from office on the day on which they would have retired from office if this Act had not been passed;
- (b) the rural council shall continue and shall be deemed to have been elected for and shall be the rural district council for the rural district as altered by this Part of this Act.

Parish councils
and parish
councillors.

14. Subject to the provisions of any order which may be made by the county council under the Act of 1933 with respect to parish councils and parish councillors—

- (a) the persons immediately before the appointed day in office as parish councillors for the existing parish shall on the appointed day become parish councillors for that parish as altered by this Part of this Act but shall retire from office on the day on which they would have retired from office if this Act had not been passed;
- (b) the parish council of the existing parish shall be the parish council of that parish as altered by this Part of this Act.

Casual
vacancies.

15. Any casual vacancy which may exist on the sixteenth day of March nineteen hundred and fifty-three in the office of borough councillor county councillor rural district councillor or

parish councillor for the existing borough or for any electoral division or parish which by virtue of this Part of this Act is altered shall be deemed to exist in the office of councillor for the borough as extended by this Act or in the office of councillor for the altered electoral division or parish.

Administrative provisions

16. The rural council (except as provided by section 28 (Con- Powers of
tribution orders precepts and arrears of rates) of this Act) and rural and
the parish council shall cease to exercise any powers or discharge parish councils.
any duties in respect of any part of the added area.

17.—(1) The added area shall be deemed to form part of the Rating area
rating area of the borough. and valuation
lists.

(2) The valuation list of the existing borough and the portions
of the valuation list of the rural district which relate to heredita-
ments within the added area shall together form the valuation list
of the borough as from the appointed day.

(3) The remaining portions of the valuation list of the rural
district shall be the valuation list of that district as from the
appointed day.

18. For the purposes of all valuation lists of the borough under Deduction in
the Rating and Valuation Act 1925 the deduction to be made ascertaining
under paragraph (c) of subsection (1) of section 22 of that Act rateable
from the net annual value of such rateable hereditaments within value of
the added area as are included in class (3) of the hereditaments certain
specified in column (1) of Part II of the Second Schedule to that properties.
Act shall be the same as the deduction made from the net annual
value of similar hereditaments in the existing borough.

19.—(1) The local registrar for the rural district under the Local land
Land Charges Act 1925 and the rules made thereunder shall charges
within one month after the appointed day supply to the local registers.
registrar for the borough an office copy of every entry in the
local land charges register relating to any land situate within the
added area and shall be paid by the Corporation in respect
thereof such fees as are prescribed by the said rules.

(2) The local registrar for the borough shall within one month
after the receipt of the office copy mentioned in subsection (1)
of this section enter the same with any necessary modifications
in the appropriate part of the local land charges register of the
borough.

(3) Until the entries are made as aforesaid or until the expira-
tion of two months from the appointed day whichever be the

PART II.
—cont.

earlier day the following provisions shall have effect in respect of all land within the added area :—

- (a) The local registrar for the borough shall give notice to any person desiring to make a personal search that an additional search should be made in the register for the rural district ;
- (b) Where application is made for an official search the local registrar for the borough shall issue free of charge a certificate of official search in the register of the borough and shall forward to the local registrar for the rural district the application received by him together with the fees paid in respect thereof ;
- (c) The local registrar for the rural district shall permit and make such searches and furnish such office copies and certificates as he would have been required to permit make and furnish and shall in relation thereto have the same powers and be subject to the same obligations as if this Act had not been passed ;
- (d) Where an entry of a local land charge which has been duly made in the local land charges register of the rural district is required by this section to be transferred from the register of such district to the register of the borough such charge shall not be void as against a purchaser for money or money's worth of a legal estate in the land affected thereby by reason only that it has not been entered in the register of the borough.

Jury service.

20. For the purpose of summoning jurors and of jury service any parish affected by this Part of this Act shall be deemed to continue unaltered until a new jurors' book for the parish as altered comes into force.

As to
registration
districts.

21. Nothing in this Part of this Act shall affect the area of any existing registration district or sub-district without prejudice however to the exercise of the powers contained in sections 24 and 131 of the Act of 1929 as to the alteration thereof.

Burial board.

22.—(1) The area of the Corporation as burial board for the existing borough shall be altered by the inclusion in such area of the added area and the Corporation shall have within such area as so altered to the exclusion of any other burial authority all the powers duties and liabilities of a burial board under the Burial Acts 1852 to 1906.

(2) Nothing in this Part of this Act shall prejudice or affect any right of burial or of constructing a burial place or of erecting or placing any monument tablet gravestone or inscription which any person may have acquired before the appointed day or

prejudicially affect any right privilege authority or duty which immediately before the appointed day is exercisable by or attaches to any incumbent or sexton under the Burial Acts 1852 to 1906.

PART II
—cont.

Local Acts adoptive Acts byelaws etc.

23.—(1) (a) The unrepealed provisions of the local Acts and Acts orders any other local Act or order having the effect of an Act etc. of Parliament affecting the existing borough or the Corporation thereof and in force within the existing borough immediately before the appointed day ;

(b) The provisions of any public general Act in force throughout the existing borough immediately before the appointed day by virtue of an adoption by the council or their predecessors and any order in force under such Act throughout the existing borough ;

(c) Any order made under the Shops Act 1950 and in force immediately before the appointed day in the existing borough ;

shall extend and apply to the borough and any reference therein to the existing borough or the Corporation thereof shall be deemed to refer to the borough and the Corporation.

(2) (a) The provisions of any public general Act in force in the added area immediately before the appointed day by virtue of an adoption by the rural council or their predecessors and any order in force under such Act in the added area ; and

(b) The provisions of any order made under the Shops Act 1950 and in force immediately before the appointed day in any part of the added area ;

shall cease to have effect in relation to the added area.

(3) The provisions of any protective section for the benefit of the rural council or of the parish council or the predecessors of either of such councils contained in any local Act or order by whomsoever obtained so far as they relate to or affect any part of the added area shall enure on and after the appointed day to the benefit of the Corporation and shall be construed as if a reference to the Corporation were substituted for any reference to either of such councils or their predecessors as the case may be.

24. Subject to the provisions of any order which the Minister may make after the passing of this Act the provisions of any order made before the passing of this Act by the Local Government Board the Minister of Health the Minister of Local Government and Planning or the Minister and conferring upon Powers under section 33 of Local Government Act 1894 and section 271 of Act of 1933.

PART II
—cont.

the council of the existing borough any of the powers relating to the matters mentioned in section 33 of the Local Government Act 1894 or in section 271 of the Act of 1933 and in that order so far as such powers are still in force or still have effect shall be deemed to have effect as if any reference in those provisions to the existing borough the council of the existing borough and the existing parish of Leamington extended and applied respectively to the borough the council and the parish of Leamington as altered by this Act.

Sunday
Entertainments
Act 1932.

25. Section 1 of the Sunday Entertainments Act 1932 shall from the appointed day extend to the borough as before that day it extended to the existing borough.

Byelaws
regulations
and scales
of charges.

26.—(1) All byelaws made by the Corporation and in force immediately before the appointed day shall apply to the borough until repealed or altered and any byelaw made by the rural council and in force immediately before the appointed day shall on that day cease to apply within the added area.

(2) (a) All byelaws made by the county council and in force within the existing borough shall apply to the borough until repealed or altered.

(b) All other byelaws made by the county council and in force immediately before the appointed day within the added area shall cease to be in force within the added area.

(3) Any proceedings which if this Act had not been passed might have been taken for any offence alleged to have been committed against any byelaw (other than a byelaw made by the county council and continued in force by the foregoing provisions of this section) before the appointed day within the added area may be taken by the Corporation.

(4) In this section "byelaws" includes any regulation scale of charges list of tolls table of fees or payments.

*Property liabilities etc. and debts*Corporation
property
liabilities etc.

27. Subject to the provisions of this Part of this Act all property immediately before the appointed day vested in the Corporation for the benefit of the existing borough (not being property held on any charitable trust) shall by virtue of this Act be held by the Corporation for the benefit of the borough and the Corporation shall hold enjoy and exercise for the benefit of the borough all the powers which immediately before that day are exercisable by or vested in the Corporation for the benefit of the existing borough and all liabilities which immediately before the appointed day attach to the Corporation in respect of the existing borough shall on that day attach to them in respect of the borough.

28.—(1) Notwithstanding the alteration of areas effected by this Part of this Act all contribution orders and precepts made or issued before the appointed day shall be as valid in law as if this Act had not been passed.

PART II
—cont.

Contribution
orders
precepts and
arrears of
rates.

(2) All rates in respect of any period prior to the appointed day and not collected before the appointed day in respect of hereditaments within the added area shall be collected and recovered as if this Act had not been passed.

29.—(1) As from the appointed day—

Roads in
added area.

(a) the Act of 1929 shall have effect as if the Corporation had claimed under section 32 of that Act to exercise the functions of maintenance and repair of the classified roads in the added area ; and

(b) all unclassified roads in the added area shall cease to be county roads and shall vest in the Corporation and for the purposes of the maintenance repair and improvement of and other dealing with any such road the Corporation shall have the same powers and duties as respects such roads as they have as respects unclassified roads (not being county roads) vested in them prior to the appointed day.

(2) Nothing in this section shall affect the provisions of subsection (2) of section 31 of the Act of 1929 in its application to any unclassified road in the added area becoming a classified road nor the rights of the Corporation under section 32 of the said Act in respect of any road in the added area which after the appointed day becomes a county road.

(3) If at any time after the appointed day any classified road in the added area becomes an unclassified road such road shall thereupon cease to be a county road and shall vest in the Corporation and for the purposes of maintenance repair and improvement of and other dealing with such road the Corporation shall have the same powers and duties as respects that road as they have as respects unclassified roads (not being county roads) vested in them prior to the appointed day.

Supplementary provisions

30.—(1) The powers and duties of the justices of the peace for the existing borough and of the clerk to those justices shall extend to and apply throughout the borough :

Jurisdiction
of borough
justices etc.
extended.

Provided that subject to the provisions of subsection (3) of section 26 (Byelaws regulations and scales of charges) of this Act—

(a) every person alleged to have committed an offence in any part of the added area before the appointed day

PART II
—cont.

shall be tried and dealt with as if this Act had not been passed ;

- (b) any proceeding which before the appointed day has been begun by or is pending before any court or any justice in relation to any matter arising in or concerning the added area or any part thereof may be carried on continued and completed in like manner and with the like incidents and consequences as nearly as may be as if this Act had not been passed.

(2) The added area shall cease to form part of the Kenilworth petty sessional division of the county.

(3) Where immediately before the appointed day a probation order made or having effect as if made under section 3 of the Criminal Justice Act 1948 is in force and the probationer is residing in any part of the added area the supervising court may if a petty sessional division of the county is named in the order amend the order under paragraph 2 of the First Schedule to that Act as if the probationer had changed his residence and nothing in the proviso to subsection (1) of this section shall be construed in relation to any probation order whenever made as preventing the justices of the peace for the borough as the supervising court from dealing with the probationer in pursuance of any power conferred upon them by the said Act of 1948.

(4) Where immediately before the appointed day a provisional grant of a justice's licence or of an authority for the ordinary removal of a justice's licence has been made under section 33 of the Licensing (Consolidation) Act 1910 in respect of premises about to be constructed or in the course of construction in the added area such provisional grant shall be deemed to have been made by the licensing justices for the borough :

Provided that where immediately before the appointed day such provisional grant awaits confirmation any order of confirmation in respect thereof shall be made as if this Act had not been passed.

Officers of
Corporation
continued.

31. The town clerk and all other officers and servants of the Corporation of the existing borough who hold office immediately before the appointed day shall continue to be the town clerk and officers and servants of the Corporation of the borough and shall hold their offices by the same tenure as before that day.

Borough
auditors.

32. The auditors of the existing borough elected or appointed under section 237 of the Act of 1933 who are in office on the appointed day shall continue in office until their successors are elected or appointed.

33.—(1) All public books writings and papers of the existing parish relating exclusively to any part of the added area and all documents relating exclusively to any part of the added area and directed by law to be kept with the public books writings and papers of such parish (except any book or document relating to the affairs of the church or to ecclesiastical charities or to a parochial non-ecclesiastical charity) and all plans papers and writings of the rural council relating exclusively to any part of the added area shall be deposited in such custody as the Corporation may direct. Parish books and documents.

(2) Any ratepayer of any area of which the existing parish forms part shall at all times have the same right of inspection and of making extracts from the public books writings papers and documents referred to in this section as he would have had if this Act had not been passed.

34. Where in consequence of any alteration of areas or authorities made by this Part of this Act any adjustment of any property income debts liabilities or expenses so far as they are affected by the alteration is required an adjustment shall be made between the councils or other authorities affected under and in accordance with section 151 of the Act of 1933 in all respects as if this Act were an order under Part VI of the Act of 1933. Financial adjustments.

35. Any licence certificate exemption or permit granted or issued by an authority to any person residing in or in respect of any property matter or thing within the added area and subsisting at the appointed day which could have been granted or issued by the Corporation or some other authority for the same purpose to any person residing in or in respect of any property matter or thing within the existing borough shall continue in force for the period for which it was granted or issued as fully and effectively as if it had been granted or issued by the Corporation or such other authority. Licences certificates exemptions and permits.

36.—(1) No alteration effected by this Part of this Act in the area of any local or other authority shall cause to abate or shall prejudicially affect or prevent the continuance of any action cause of action or proceeding which immediately before the appointed day is pending or existing by or against any such authority or any contract deed bond agreement or other instrument (subsisting immediately before the appointed day) entered into or made by any such authority or their predecessors: Savings for actions contracts etc.

Provided that—

- (a) any action cause of action or proceeding which immediately before the appointed day is pending or existing by or against any such authority in relation exclusively to

PART II
—cont.

any part of the added area may be continued prosecuted and enforced by or against the Corporation ; and

- (b) all contracts deeds bonds agreements and other instruments (subsisting immediately before the appointed day) entered into or made by any such authority (or their predecessors) in relation exclusively to any part of the added area shall continue in force as fully and effectually as if instead of such authority (or their predecessors) the Corporation had been a party thereto.

(2) All legal proceedings pending immediately before the appointed day may be amended in such manner as may be necessary or proper in consequence of this Part of this Act.

Saving for
qualification of
councillors.

37. Any member of a local authority who is to continue in office after the appointed day shall not during his term of office current immediately before that day be deemed to lose his qualification for being a member by reason of the alterations of area made by this Part of this Act.

Other saving
provisions.

38. Nothing in this Part of this Act shall—

- (a) be construed as restricting any power under the Act of 1929 or the Act of 1933 of altering any of the areas or the constitution of any authority or committee ;
- (b) alter the area of any constituency ;
- (c) alter the area of any ecclesiastical parish or prejudice vary or affect any power right interest or jurisdiction in over or in connection with any charitable endowment ;
- (d) (save as in this Act expressly provided) affect the provisions of the Rating and Valuation Acts 1925 to 1940 or Parts III IV and V of the Local Government Act 1948 ; or
- (e) affect land tax.

PART III

LANDS

Extension of
power to
acquire land
by agreement.

39.—(1) The Corporation may by agreement acquire (whether by purchase lease or exchange) and hold any land which in their opinion it is desirable that they should acquire for or in connection with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the borough notwithstanding that the land may not be immediately required.

(2) Any land acquired under this section may be appropriated by the Corporation subject to and in accordance with the provisions of section 163 of the Act of 1933 as if it were not required for the purposes for which it was acquired.

(3) Pending such appropriation as aforesaid all expenses incurred by the Corporation under this section shall be payable out of the general rate fund.

40.—(1) The Corporation may—

Retention and
disposal of
land.

- (a) retain and hold and use for such time as they think fit any land or interest in land acquired by them under this Act ;
- (b) sell lease exchange or otherwise dispose of any such land or interest in such manner and for such consideration and on such terms and conditions as they think fit (whether in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of payment in any other form) ;
- (c) sell exchange or dispose of any rents reserved on the sale lease exchange or other disposition of any such land or interest ;
- (d) make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition ;
- (e) on any such exchange pay or receive money for equality of exchange :

Provided that the Corporation shall not without the consent of the Minister sell lease exchange or otherwise dispose of any such land or any interest therein at a price or rent or for a consideration of a value less than the current market value of the land or interest but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained.

(2) Nothing in this section shall release the Corporation or any person purchasing or acquiring any land or interest in land from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which the land or interest has been conveyed or leased to or otherwise acquired by the Corporation or any persons from or through whom the Corporation have derived title to it.

41.—(1) With respect to any land acquired under this Act the Corporation may if they think fit—

Powers of
leasing.

- (a) accept a surrender of any lease of the land granted by them and grant either to the lessee or tenant under the

PART III
—cont.

surrendered lease or to any other person a new lease of all or any of the land leased by the surrendered lease ;

(b) grant reversionary leases of all or any of the said land ;

(c) enter into and carry into effect any agreement for or with respect to the surrender or grant of any such lease ;

(d) in any such lease or agreement give to the lessee or tenant or intended lessee or tenant on such terms and conditions as the corporation think fit an option to purchase the fee simple in reversion or other the reversionary interest of the Corporation in all or any of the land leased or agreed to be leased.

(2) In this section the expression “ lease ” includes a letting.

Reservation of
easements etc.

42. On selling any land the Corporation—

(a) may reserve to themselves all or any part of the water rights or other rights or easements belonging thereto and may make the sale subject to such reservation accordingly ;

(b) may make the sale subject to such other reservations special conditions restrictions and provisions with respect to the exercise of noxious trades or the deposit or discharge of manure sewage or other impure matter or otherwise as they think fit.

Proceeds of
disposal of
surplus land.

43.—(1) Any capital money received by the Corporation on the resale or exchange of or by leasing any land acquired under this Act may (so far as they consider necessary and subject to the approval of the Minister) be applied by them in the purchase of other land.

(2) Any capital money so received and not so applied shall (subject to the provisions of section 125 (Consolidated loans fund) and section 127 (Capital fund) of this Act) be applied in or towards the extinguishing of any loan raised by the Corporation under any enactment.

(3) Any application of money under the last foregoing subsection shall unless the Minister on the application of the Corporation otherwise directs and subject in that event to such conditions as he may impose be in addition to and not in substitution for such method of extinguishing the loan as may have been adopted by the Corporation under any enactment.

(4) Any capital money received by the Corporation on the resale or exchange of or by leasing any land acquired under any enactment other than this Act shall be applied in the same manner as capital money received under that enactment is applicable or in such other manner as may be approved by the Minister.

44.—(1) The Corporation may (with the consent of the Minister) lay out and develop any land for the time being belonging to them and not required for the purpose for which it was acquired and may on any such land erect and maintain houses shops offices warehouses and any other buildings and construct sewer drain pave channel and kerb streets roads and highways:

Provided that nothing in this section shall apply to land acquired by the Corporation under section 38 or section 40 of the Act of 1947 or to land appropriated by them for the purposes for which land can be acquired under those sections.

(2) The Corporation may use or dispose of the building or other materials of any houses or structures on any land acquired or appropriated by them which they deem it necessary or desirable to pull down.

45.—(1) The Corporation may advance money to the purchaser or lessee of any land acquired from or leased by the Corporation for the purpose of enabling or assisting him to build on such land or to extend or improve any existing building thereon:

Loans for
erection etc.
of buildings.

Provided that any such advance shall not exceed in the case of a building being a house nine-tenths or in the case of any other building three-quarters of the amount which in the opinion of the Corporation will be the market value of the interest of the borrower in the land after the purpose of the loan has been effected.

(2) Before any advance is made under this section its repayment shall be secured to the satisfaction of the Corporation by a mortgage of the land and building in respect of which the advance is to be made or of the lessee's interest therein and the instrument securing the advance shall—

- (a) fix the rate of interest to be paid being a rate not less than the rate for the time being in operation under the Small Dwellings Acquisition Acts 1899 to 1923 as amended by section 92 of the Housing Act 1935;
- (b) fix the period within which the advance is to be repaid being a period not exceeding thirty years from the date of the advance;
- (c) require the repayment to be made either by equal instalments of principal or by an annuity of principal and interest combined;
- (d) fix the intervals at which all payments on account of principal and interest are to be made being intervals not exceeding half a year;

PART III
—cont.

- (e) authorise the borrower at any of the usual quarter days after one month's notice and on paying all sums due on account of interest to repay the whole of the outstanding principal of the advance or any part thereof being one hundred pounds (or such less sum as may be provided in the said instrument or as the Corporation may be prepared to accept) or a multiple of one hundred pounds (or of such less sum as aforesaid) ;
- (f) where the repayment is to be made by an annuity of principal and interest combined provide for determining the amount by which the annuity is to be reduced when a part of the advance is paid off otherwise than by way of an instalment of the annuity ;
- (g) require the borrower either—
 - (i) to keep the building in respect of which the advance is made insured against fire to the satisfaction of the Corporation and to produce to the Corporation when required the receipts for the premiums paid in respect of the insurance ; or
 - (ii) (if the Corporation elect themselves to insure the said building against fire) to repay to the Corporation the amounts of any premiums paid by them from time to time in that behalf ; and
- (h) require the borrower to keep the said building in good repair.

(3) Any person acting on behalf of the Corporation and authorised in writing by the town clerk shall have power at all reasonable times to enter any building in respect of which an advance has been made under this section for the purpose of ascertaining whether the conditions of this section and of the instrument aforesaid are being complied with.

(4) The borrower may with the permission of the Corporation (which shall not be unreasonably withheld) at any time transfer his interest in the land and building in respect of which the advance was made but any such transfer shall be made subject to the terms of the instrument securing the advance.

(5) In this section the expression "lessee" includes a person to whom the Corporation have agreed to grant a lease and the expression "lease" shall be construed accordingly.

Undertakings
and agreements
binding
successive
owners.

46.—(1) Every undertaking given by or to the Corporation to or by the owner of any legal estate in land and every agreement made between the Corporation and any such owner being an undertaking or agreement—

- (a) given or made under seal on the passing of plans or otherwise in connection with the land ; and

(b) expressed to be given or made in pursuance of this section ;

PART III
—cont.

shall be binding not only upon the Corporation and any owner joining in the undertaking or agreement but also upon the successors in title of any owner so joining and any person claiming through or under them.

(2) Any such undertaking or agreement shall be treated as a local land charge for the purposes of the Land Charges Act 1925.

(3) Any person upon whom any such undertaking or agreement is binding shall be entitled to require from the Corporation a copy thereof.

PART IV

STREETS

General

47.—(1) In this Part of this Act the following expressions have the meanings hereby respectively assigned to them :—

Interpretation
of Part IV.

“ street byelaws ” means any byelaws for the time being in force in the borough with respect to the construction and laying out of new streets ;

“ structure ” means a wall fence hoarding or similar erection but for the purpose of this definition the expression “ wall ” does not include a wall forming part of a permanent building.

(2) For the purposes of this Part of this Act the erection of a building shall be deemed to have begun at the time when the clearing of the site or the excavation for the foundations thereof began.

New streets

48.—(1) Where a plan and sections of a new street have been deposited with the Corporation in pursuance of street byelaws and have been approved by them no person shall without their consent begin to erect a building on land abutting on the street until he has defined by posts or in some other suitable manner the approved line width and level of so much of the street as abuts on the land on which the building is to be erected and on any land which will be occupied in connection with the building.

Prohibition
of building
until street
defined.

(2) Where the approved width of a new street has been defined as aforesaid no person shall begin to erect a building or structure nearer to the centre of the street than the line of the posts or other marks by which the width has been so defined.

PART IV
—cont.

(3) If any person contravenes the provisions of either of the foregoing subsections he shall be liable to a penalty not exceeding twenty pounds and the Corporation may—

(a) in the case of a contravention of subsection (1) define as aforesaid the approved line width and level of the new street ; and

(b) in the case of a contravention of subsection (2) remove the building or structure ;

and in either case recover the expenses of so doing from that person.

Prohibition
of building
until street
formed and
sewered.

49.—(1) Where a plan and sections of a new street deposited with the Corporation in pursuance of street byelaws are approved by them they may by notice prohibit the erection of any building on land abutting on the street until the carriageway of the street has been constructed and the street has been sewered in accordance with the said byelaws :

Provided that where the plan shows that the street will exceed one hundred yards in length the Corporation shall divide the street for the purpose of the notice into lengths not exceeding one hundred yards and each such length shall for that purpose be treated as a separate street.

(2) Any such notice shall be given to the person by whom or on whose behalf the plan and sections were deposited and the prohibition imposed thereby shall be binding on successive owners of the land to which it relates.

(3) If any person contravenes the provisions of any such notice he shall be liable to a penalty not exceeding twenty pounds and the Corporation may construct the carriageway and works of sewerage which should have been constructed and recover the expenses of so doing from that person :

Provided that this subsection shall have effect subject to the provisions of the Land Charges Act 1925 with respect to the avoidance of any such notice for want of registration as a local land charge.

(4) The execution of any works under the provisions of this section shall not relieve any person from any liability under the Private Street Works Act 1892 or any local Act relating to private street works for the time being in force in the borough.

Termination
of new
streets.

50.—(1) Where after the passing of this Act a plan and sections of a new street deposited with the Corporation in pursuance of street byelaws are approved by them they may for the purpose of securing adequate means of communication between the new street and any other street (whether existing or intended) by notice prohibit the erection or retention of any structure at

either end of the new street on land belonging at the time of the deposit to the owner of the land upon which the new street is proposed to be constructed or laid out:

Provided that no such notice shall affect any structure existing at the time of the deposit until both the new street and that other street have become highways repairable by the inhabitants at large.

(2) Any such notice shall be given to the person by whom or on whose behalf the plan and sections were deposited and the prohibition imposed thereby shall be binding on successive owners of the land to which it relates.

(3) If any person contravenes any notice under this section he shall be liable to a penalty not exceeding twenty pounds and the Corporation may remove the structure and recover the expenses of so doing from that person:

Provided that this subsection shall have effect subject to the provisions of the Land Charges Act 1925 with respect to the avoidance of any such notice for want of registration as a local land charge.

51.—(1) Where a plan and sections of a new street deposited with the Corporation in pursuance of street byelaws are approved by them they may for the purposes of safety by notice require that the corners formed at the junction of the new street with another street (whether existing or intended but not being a trunk road) shall be rounded or splayed off in such manner as may be specified in the notice.

Rounding
or splaying
off corners
at street
junctions.

(2) Any such notice—

(a) shall be given to the person by whom or on whose behalf the plan and sections were deposited; and

(b) shall be binding on successive owners of the land to which it relates; and

(c) shall be treated for the purposes of section 15 of the Land Charges Act 1925 as if the said requirement were a restriction on the user of land imposed thereby and shall be registered accordingly under the said section as a local land charge.

(3) The Corporation shall pay compensation to any person injuriously affected by the exercise of the powers conferred by this section and in default of agreement the amount thereof shall be determined by arbitration in accordance with the provisions of the Acquisition of Land (Assessment of Compensation) Act 1919.

PART IV
—cont.

(4) If any person lays out or constructs a new street otherwise than in compliance with a notice in respect of the street under this section he shall be liable to a penalty not exceeding twenty pounds and the Corporation may do such work as may be necessary to comply with the notice and recover the expenses of so doing from that person :

Provided that this subsection shall have effect subject to the provisions of the Land Charges Act 1925 with respect to the avoidance of any such notice for want of registration as a local land charge.

Adjustment of
boundaries of
estates in
connection
with streets.

52.—(1) Where a plan and sections of a new street deposited with the Corporation in pursuance of street byelaws are approved by them they may for the purpose of securing the proper laying out or development of any estate through which the street is to run by notice require that such provision shall be made—

(a) for adjusting and altering the boundaries of the estate and any other estate adjacent or near thereto and for effecting exchanges of land in connection therewith ;
and

(b) for the removal modification or imposition of covenants restrictions and conditions attaching to the land comprised in the estate or any such other estate ;

as may be necessary or desirable having regard to the line and layout of the new street.

(2) Any such notice shall be given to the owners of all the estates affected thereby.

(3) The powers conferred by subsection (1) of this section may also be exercised on the approval of a plan for the widening of an existing street or the widening or adaptation of a road foot-path or way so as to form a new street.

(4) The provision so to be made and the terms and conditions upon which it is to be made shall failing agreement between the Corporation and the persons interested in the respective estates be determined by a single arbitrator to be appointed in default of agreement by the Minister.

(5) An agreement or award made under this section may provide for the payment of money by the Corporation but no such award shall provide for the payment of money by any other person without his consent.

(6) Any award made under this section shall operate to effect any adjustment or alteration of boundaries or exchange of land or the removal modification or imposition of covenants restrictions and conditions attaching to any land which may be provided for by the award and shall be duly stamped accordingly.

(7) The costs and expenses of any arbitration under this section shall unless and except in so far as the award may otherwise provide be paid by the Corporation.

(8) Any land or money received by any person in respect of any adjustment or alteration of boundaries or exchange of land under this section shall be held by him subject to the same trusts if any as the land exchanged therefor.

(9) Any land received by any person as aforesaid shall also be held subject to the same covenants restrictions and conditions if any so far as the same are applicable as the land exchanged therefor and any such covenants restrictions or conditions shall be deemed to be applicable unless otherwise provided in an agreement or award made under this section.

(10) For the purposes of this section the Corporation may themselves purchase any land by agreement and—

- (a) may sell or lease the whole or part of any land so purchased at such time and at such price and on such conditions as they think fit ; or
- (b) may exchange the whole or part of any such land for other land at such time and on such conditions as they think fit and pay or receive money for equality of exchange ; or
- (c) may appropriate any such land for any purpose approved by the Minister ;

and until any such sale lease exchange or appropriation may occupy manage or let the land or any part thereof in such manner as they think reasonable :

Provided that the Corporation shall not without the consent of the Minister sell or lease any such land at a price or rent or for a consideration of a value less than the current market value of the land but a purchaser or lessee shall not be concerned to inquire whether such consent is necessary or has been obtained.

(11) In this section the expression “ estate ” includes any parcel of land.

Improvement of streets

53.—(1) Subject to the provisions of this section the Corpora-
tion shall have power—

- (a) to plant trees or shrubs in any street in the borough or in
tubs placed by them for the purpose in any such street ;
- (b) to lay out grass verges or gardens in any such street ;
- (c) to erect and maintain guards or fences and otherwise do
anything expedient for the maintenance or protection
of such trees shrubs tubs grass verges or gardens ;

Trees grass
verges and
gardens.

PART IV
—cont.

(d) to cut down any such tree or shrub to remove any such tub and to abolish any such grass verge or garden or enlarge or diminish the area thereof ;

(e) by notice to prohibit persons from entering upon or causing or permitting horses cattle or vehicles to enter upon any such grass verge which is maintained in an ornamental condition or mown or any such garden.

(2) Any such notice as is referred to in paragraph (e) of the foregoing subsection shall be conspicuously posted on or in proximity to the grass verge or garden to which it relates and if any person contravenes a notice so posted he shall be liable to a penalty not exceeding twenty shillings.

(3) Subject to the provisions of this subsection the powers conferred by this section shall not be exercisable except in a street maintainable by and vested in the Corporation or upon land so vested which forms part of a street :

Provided that when carrying out in any street or any part thereof any works under the Private Street Works Act 1892 the Corporation may exercise any such power in the street or that part thereof with the consent of the majority of two-thirds in number and rateable value of the owners of land abutting on the street or that part thereof and treat any expenses incurred in so doing as part of the expenses of carrying out the said works.

(4) The powers conferred by this section shall not be exercised so as to hinder the reasonable use of the street by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises abutting on the street.

(5) Section 1 of the Roads Improvement Act 1925 shall cease to apply to the Corporation and anything done by the Corporation under that section before the passing of this Act shall be deemed to have been done under this section.

(6) Nothing in this section shall affect the duty of the Corporation to provide footpaths or grass or other margins under section 58 of the Road Traffic Act 1930.

Variation of
width of
carriageways
and footways.

54.—(1) Subject to the provisions of this section the Corporation may vary the relative widths of the carriageway and footway or footways in any street in the borough being a highway repairable by the inhabitants at large.

(2) The Corporation shall not exercise the powers of this section in relation to a trunk road without the consent of the Minister of Transport.

(3) At least twenty-one days before commencing any work under this section which will materially reduce the width of the carriageway or any footway of a classified road the Corporation shall send notice of the proposed work to the Minister of Transport.

(4) The Corporation shall not exercise the powers of this section in relation to so much of any street as is situate upon a bridge over any railway canal or inland navigation or upon the approaches to any such bridge without the consent in writing of the railway canal or inland navigation undertakers concerned:

Provided that such consent shall not be unreasonably withheld and any question whether or not it is unreasonably withheld shall be determined by the Minister of Transport.

55.—(1) Subject to the provisions of this section the Corporation may enter into and carry into effect agreements with persons having a legal interest in land adjoining any street in the borough not being a trunk road for the adjustment of the boundary of the street. Adjustment of
boundaries
of streets.

(2) For the purposes of this section the Corporation—

(a) may exchange land including land forming the site of the street for other land and pay or receive money for equality of exchange; and

(b) shall be deemed to be the owners of the land forming the site of the street and shall be entitled to convey any such land in accordance with the agreement.

(3) No such agreement shall be entered into until the expiration of one month from the date on which notice giving particulars of the proposed agreement has been published in some local newspaper circulating in the borough.

(4) During the said period of one month any four ratepayers of the borough may appeal to a court of summary jurisdiction against the proposal to enter into the agreement.

(5) Where the street is a county road (whether the Corporation have claimed to exercise the functions of maintenance and repair of the street or not) the county council shall have the same right of appeal as any four ratepayers of the borough have under the last foregoing subsection.

(6) Nothing in this section shall be taken to dispense with the consent of any government department to any appropriation exchange or other disposition of any land of the Corporation in any case in which the consent of that department would have been required if this Act had not been passed.

(7) In this section the expression “ratepayers” has the same meaning as in the Rating and Valuation Act 1925.

PART IV
—cont.For protection
of Postmaster-
General.

56.—(1) Where pursuant to section 55 (Adjustment of boundaries of streets) of this Act the Corporation enter into an agreement with a person having a legal interest in land adjoining any street for the conveyance to that person of the site of any part of the street and immediately before the date on which the site ceases to be part of the street there was under in upon over along or across such site any telegraphic line belonging to or used by the Postmaster-General the Postmaster-General shall continue to have the same powers in respect of that line as if such site had remained part of the street but nothing in Part I of the Public Utilities Street Works Act 1950 shall have effect in relation to those powers:

Provided that if any person in whom such site is vested desires that such telegraphic line should be altered paragraphs (1) to (8) of section 7 of the Telegraph Act 1878 shall apply to the alteration and accordingly shall have effect subject to any necessary modifications as if references therein to undertakers included references to the said person desiring the alteration.

(2) As between the Corporation and the Postmaster-General nothing in the foregoing subsection shall affect the operation of Part II of the Public Utilities Street Works Act 1950 or the rights of the Postmaster-General and the Corporation thereunder.

(3) In this section the expressions “alter” “alteration” and “telegraphic line” have the same meanings as in the Telegraph Act 1878.

Shelters etc.
for passengers
on public
service
vehicles.

57.—(1) In any street in the borough or on land belonging to the Corporation and abutting on any such street the Corporation may subject to the provisions of this section erect and maintain at stopping places on the routes of public service vehicles—

- (a) shelters and other accommodation for persons intending to travel by such vehicles; and
- (b) barriers for the regulation of queues of such persons.

(2) The Corporation shall not exercise the powers of this section—

- (a) without the consent of the Minister of Transport in any street being a trunk road or on land abutting on any such street; or
- (b) without the consent of the undertakers concerned—
 - (i) in or upon any bridge carrying a street over any railway canal or inland navigation or the approaches thereto or under a bridge carrying a railway canal or inland navigation over any street; or
 - (ii) in any street belonging to and repairable by any transport undertakers and forming the approach

to any station dock wharf or depot of such undertakers ; or

(iii) so as to obstruct or interfere with the access to or exit from any station dock wharf or depot of any transport undertakers ; or

(c) without the consent of the owner of the land or premises concerned in any street or on land abutting on any street in such manner as to obstruct the existing access to any land or premises abutting on such street.

(3) Any consent required by this section shall not be unreasonably withheld but may be given subject to any reasonable conditions including a condition that the Corporation shall remove any shelter or other accommodation or barriers either at any time or at or after the expiration of a period if reasonably required so to do by the person giving the consent.

(4) Any question arising as to whether any consent required by this section has been unreasonably withheld or has been given subject to unreasonable conditions or whether the removal of any shelter or other accommodation or barriers has been unreasonably required shall—

(a) in the case of a consent of the Minister of Transport be referred to and determined by an arbitrator to be appointed in default of agreement by the President of the Institution of Civil Engineers ;

(b) in the case of any other consent be referred to and determined by the Minister of Transport.

(5) The Corporation may enter into and carry into effect agreements with any person authorised to run public service vehicles within the borough in relation to the erection maintenance and use of any such shelter or other accommodation or barriers and as to the contributions to be made by any such person towards the cost of the provision and maintenance thereof.

(6) In this section the expression “ public service vehicle ” has the same meaning as in the Road Traffic Acts 1930 to 1947 and the expression “ transport undertakers ” means any railway dock canal inland navigation or passenger road transport undertakers.

58.—(1) The Corporation may on a conspicuous part of any Direction building structure (other than a tower pylon or other similar signs. apparatus belonging to the electricity board) or land in the borough at or near the corner of any street cause to be put up or painted signs indicating the classified road number of the street and the direction and distance to towns railway stations public buildings and other places of a public character.

PART IV
—cont.

(2) At least one month before exercising their powers under this section the Corporation shall give to the owner of the building structure or land notice of their decision so to do together with particulars of the size design and position of the sign proposed and any person aggrieved by the decision of the Corporation may appeal to a court of summary jurisdiction.

(3) If any person wilfully and without the consent of the Corporation removes obliterates alters defaces or obscures any such sign otherwise than in the course of demolishing or altering the building or structure or executing work on the land he shall be liable to a penalty not exceeding forty shillings and the Corporation may recover from him the expenses of replacing or making good the sign.

(4) The exercise of the powers conferred by this section shall be subject to the provisions of the Road Traffic Acts 1930 to 1947 and to any regulations made or any general or other directions given by the Minister of Transport in pursuance of the said provisions.

Attachment of
street lamps
brackets etc.

59.—(1) Subject to the provisions of this section the Corporation may affix to any building in the borough such lamps brackets pipes electric lines and apparatus (in this section called “attachments”) as may be required for the purposes of street lighting.

(2) The Corporation shall not affix attachments to a building under this section without the consent of the owner of the building:

Provided that where in the opinion of the Corporation any consent required under this subsection is unreasonably withheld they may apply to the appropriate authority who may either allow the attachments subject to such conditions (if any) as to rent or otherwise as the authority thinks fit or disallow the attachments.

(3) Where any attachments have been affixed to a building under this section and the person who gave the consent or who was the owner of the building when the attachments were allowed by the appropriate authority ceases to be the owner thereof the subsequent owner may give to the Corporation notice requiring them to remove the attachments and subject to the provisions of this subsection the Corporation shall comply with the requirement within three months after the service of the notice:

Provided that where in the opinion of the Corporation any such requirement is unreasonable they may apply to the appropriate authority who may either annul the notice subject to such

conditions (if any) as to rent or otherwise as the authority thinks fit or confirm the notice subject to such extension (if any) of the said three months as the authority thinks fit.

PART IV
—cont.

(4) Where any attachments have been affixed to a building under this section the owner of the building may require the Corporation at their own expense temporarily to remove the attachments where necessary during any reconstruction or repair of the building.

(5) If the owner of any building suffers damage by or in consequence of the affixing to the building of any attachments under the powers of this section he shall be entitled to be paid by the Corporation compensation to be determined in case of dispute in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919.

(6) In this section the following expressions have the meanings hereby assigned to them :—

“ appropriate authority ” means a court of summary jurisdiction except that in relation to a building mentioned in the first column of the following table it means the Minister specified in relation thereto in the second column of that table :—

Building forming part of an aerodrome licensed pursuant to an order made under the Civil Aviation Act 1949 or any enactment repealed by that Act.	The Minister of Civil Aviation.
Building which— (i) is subject to a building preservation order made under section 29 of the Act of 1947; or (ii) is included in a list of buildings of special architectural or historic interest compiled or approved by the Minister of Town and Country Planning the Minister of Local Government and Planning or the Minister under section 30 of the Act of 1947; or (iii) is alleged by the owner thereof to be a building of special architectural or historic interest; or (iv) is owned by statutory water undertakers.	The Minister.
Building owned by a highway authority railway canal dock or inland navigation undertakers.	The Minister of Transport.
Building owned by electricity or gas undertakers.	The Minister of Fuel and Power.

“ building ” includes a structure and a bridge or aqueduct over a street ;

PART IV
—cont.

“owner” means—

(a) in relation to a building occupied under a tenancy for a term of years whereof five years or more remain unexpired and not forming part of such an aerodrome as aforesaid the occupier of the building;

(b) in relation to a building forming part of such an aerodrome as aforesaid the person having control of the aerodrome;

(c) in relation to any other building the person who is receiving the rack rent or who would receive the rack rent if the building were let at a rack rent;

and the expression “owned” shall be construed accordingly.

Protection and repair of streets

Application of
building line
to walls etc.

60.—(1) No person shall erect or bring forward beyond the building line on land abutting on a street in the borough any structure of a greater height than six feet six inches above the level of the ground at the nearest boundary of the street.

(2) If any person contravenes the provisions of the foregoing subsection he shall be liable to a penalty not exceeding five pounds.

(3) The foregoing provisions of this section shall not apply to a temporary structure required to be erected as mentioned in subsection (1) of this section for the purpose of the construction alteration repair or maintenance of any building or works:

Provided that if any such temporary structure is not removed when the construction alteration repair or maintenance of the building or works is completed the person who erected the structure shall be liable to a penalty not exceeding five pounds.

(4) Where any person is convicted of an offence under any of the foregoing provisions of this section the court by which he was convicted may order him within such time as may be fixed by the order to remove the structure or if he so elects to set it back or alter it so that it no longer contravenes the provisions of subsection (1) of this section and if he fails to comply with the order—

(a) he shall be liable to a penalty not exceeding twenty shillings for each day on which the failure continues; and

(b) the Corporation after giving him notice of their intention so to do may remove the structure and recover from him the expenses incurred by them in so doing:

Provided that he shall not be liable to a penalty for any day after that on which the Corporation have given him notice of their intention to remove the structure.

(5) Where after the expiration of five years from the passing of this Act there is on any site in the borough a structure which existed on that site at the passing of this Act and could not have been erected there after the passing thereof without contravening the provisions of subsection (1) of this section—

(a) the Corporation may by notice stating the effect of paragraphs (b) and (c) of this subsection require the owner or occupier of the site to remove set back or alter the structure within such time (not being less than seven days) as may be specified in the notice so that it will comply with those provisions ;

(b) if the owner or occupier complies with the said notice the Corporation shall on demand repay to him the reasonable expenses incurred by him in so doing ;

(c) if the owner or occupier fails to comply with the said notice the Corporation at their own expense may remove the structure but shall if he so requires re-erect it so as not to contravene the said provisions.

(6) In this section the expression “ building line ” in relation to any land means—

(a) any building line prescribed by the Corporation in respect of the land under the provisions of any enactment ; or

(b) if there be no such line then any line beyond which a house or building may not be erected on the land without infringing a condition enforceable by the Corporation under subsection (2) of section 140 of the Housing Act 1936 ; or

(c) if there be neither of such lines then the line beyond which a house or building may not (except with the consent of the Corporation) be erected or brought forward on the land without contravening the provisions of the Public Health (Buildings in Streets) Act 1888.

(7) The provisions of this section shall not apply to any wall erected on land belonging to any railway dock canal or inland navigation undertakers so long as that land is used by those undertakers primarily for the purposes of their railway dock canal or inland navigation undertaking.

61.—(1) Where the owner or occupier of any premises in the borough which abut on any street repairable by the inhabitants at large habitually uses or permits to be used any grass verge or kerbed or paved footway in the street as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a

Crossings over
footways.

PART IV
—cont.

motor-cycle) in passing to and from those premises the Corporation may by notice to the owner or occupier as the case may be either—

- (a) require the construction across the grass verge or footway of a carriage-crossing constructed of such materials and in such manner as may be specified in the notice ; or
- (b) in the case of a footway require it to be strengthened or adapted in such manner as may be so specified ; or
- (c) impose such other reasonable conditions on the use of the grass verge or footway as a crossing as aforesaid as may be so specified :

Provided that—

- (i) the Corporation shall not exercise the powers of this subsection in relation to the grass verge or footway of a trunk road without the consent of the Minister of Transport or otherwise than in accordance with any conditions attached by him to his consent ; and
- (ii) this subsection shall not apply to any premises used exclusively for agricultural purposes within the meaning of the Act of 1947.

(2) Any person aggrieved by a requirement of or a condition imposed by the Corporation under the preceding subsection may appeal to a court of summary jurisdiction.

(3) If the Corporation make any requirement under paragraph (a) or paragraph (b) of subsection (1) of this section such works as may be necessary to secure compliance with that requirement may be executed by the Corporation but not by any other person and the Corporation may recover from the owner or occupier the expenses of so doing (including the reasonable expenses incurred by the gas board or the electricity board in carrying out work for the protection of any apparatus).

(4) If the Corporation impose any condition under paragraph (c) of subsection (1) of this section any person who knowingly uses the grass verge or footway as a crossing as aforesaid or permits it to be so used in contravention of that condition shall be liable to a penalty not exceeding five pounds.

(5) Nothing in this section shall impose on the owner or occupier any obligation to maintain any crossing constructed or footway strengthened or adapted in pursuance of a requirement made under this section.

(6) Section 18 of the Public Health Acts Amendment Act 1907 shall not be declared to be in force in the borough and the following provisions of this subsection shall have effect in lieu

thereof as respects streets in the borough which are repairable by the inhabitants at large :—

PART IV
—cont.

(a) Any person desiring to form a carriage-crossing across a grass verge or footway in any such street or to strengthen or adapt a part of any such footway as a carriage-crossing shall apply in writing to the Corporation giving particulars of the work proposed ;

(b) The Corporation may approve the work proposed either with or without modifications or propose alternative work or reject the application :

Provided that the Corporation shall not exercise the powers conferred by this paragraph as respects the grass verge or footway of a trunk road without the consent of the Minister of Transport ;

(c) The Corporation shall give the applicant notice of their decision under the foregoing paragraph and if they approve the work proposed or propose alternative work shall furnish him with an estimate of the cost of the work as approved or proposed by them ;

(d) The applicant may deposit with the Corporation the amount of the said estimate and require them to execute the work as approved or proposed by them but shall not himself execute any such work ;

(e) As soon as practicable after such a deposit has been made the Corporation shall execute the work as approved or proposed by them and any difference between the sum deposited and the actual cost of the work shall be paid to or by the Corporation by or to the applicant as the case may require.

62.—(1) In this section the expression “retaining wall” means a wall which— Retaining walls.

(a) serves or is intended to serve as a support for earth or other material on one side only ; and

(b) does not form part of a permanent building ;

and this section applies to any length of a retaining wall being a length—

(i) any cross-section whereof is wholly or partly within twelve feet of a street in the borough ; and

(ii) which is at any point of a greater height than six feet above the level of the ground at the boundary of the street nearest that point.

(2) After the passing of this Act no length of a retaining wall to which this section applies shall be erected otherwise than in accordance with plans sections and specifications approved by

PART IV
—cont.

the Corporation and if any person erects any such length of a wall in contravention of this subsection he shall be liable to a penalty not exceeding five pounds.

(3) Any person aggrieved by the refusal of the Corporation to approve any plans sections and specifications submitted to them in pursuance of the last foregoing subsection may appeal to a court of summary jurisdiction.

(4) If any length of a retaining wall to which this section applies—

(a) is in such disrepair as to be liable to endanger persons using the street; or

(b) having been erected before the passing of this Act or erected in contravention of subsection (2) of this section is so constructed as to be liable as aforesaid;

the Corporation may by notice to the owner or occupier require him to execute such work as may be necessary to prevent it being liable as aforesaid and the provisions of section 290 of the Act of 1936 shall apply in relation to such a notice as they apply in relation to the notices mentioned in subsection (1) of that section.

(5) The provisions of this section shall not apply to a retaining wall erected on land belonging to any railway dock canal or inland navigation undertakers so long as that land is used by those undertakers primarily for the purpose of their railway dock canal or inland navigation undertaking.

Fencing of
forecourts.

63.—(1) Where the forecourt of any premises abutting on a street in the borough or any steps or projection or goods (whether for sale or not) placed in any such forecourt is or are a source of danger obstruction or inconvenience to the public the Corporation may by notice require the owner or occupier of the premises to fence the forecourt from the street.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

Forecourts
injurious to
amenities
of street.

64.—(1) If the council by resolution determine that any stall or other erection on any forecourt in the borough is by reason of its character injurious to the amenities of the street on which the forecourt abuts the Corporation may by notice require the owner or occupier of the forecourt either to make such alterations in the stall or erection as may be necessary to prevent it from being injurious to the amenities of the street or if he so elects to remove it.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

(3) In this section the expression "erection" does not include an advertisement to which regulations made under section 31 of the Act of 1947 for the time being apply.

65.—(1) No part of any awning over the footway of a street in the borough being a highway repairable by the inhabitants at large shall project over any part of the footway which is less than two feet from the outer edge of the footway. Awnings over footways.

(2) If any person places or causes or permits to be placed over any such footway an awning which contravenes the foregoing subsection he shall be liable to a penalty not exceeding forty shillings.

(3) If an awning over any such footway is so constructed or maintained as to be prejudicial to the safety or convenience of the public the Corporation may by notice require the owner or occupier of the premises to which the awning is appurtenant to carry out such work as may be necessary to prevent the awning being so prejudicial.

(4) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under the last foregoing subsection as they apply in relation to the notices mentioned in subsection (1) of that section.

(5) In this section the expression "awning" includes a blind shade or other covering.

66.—(1) In any street in the borough not being a highway repairable by the inhabitants at large the Corporation may execute such repairs as are in their opinion urgently required to prevent or remove danger to persons or vehicles in the street and may themselves pay the cost of the repairs out of the general rate fund: Urgent repairs of private streets.

Provided that the cost of the repairs executed in any street in any year under this section shall not exceed ten pounds for each one hundred yards of the length of the street.

(2) The exercise by the Corporation of their powers under this section shall not prejudice their powers under any statutory provision for the time being in force in the borough relating to private street works or private street improvement expenses or under section 19 of the Public Health Acts Amendment Act 1907.

PART IV
—cont.Evasion by
owners of
private
street works
expenses.

67.—(1) If—

- (a) any owner of land fronting adjoining or abutting on a private street in the borough transfers the part or any portion of the part of that land which fronts adjoins or abuts on that street ; and
- (b) any expenses of private street works in or in relation to that street are apportioned on that part or portion of that land ; and
- (c) the Corporation are unable to recover those expenses in whole or in part from the person to whom that part or portion of the land was transferred or by the sale thereof ; and
- (d) a court of summary jurisdiction is satisfied that the transfer was intended for the purpose of evading the payment of any expenses of private street works ;

then the expenses so apportioned or so much thereof as has not been recovered by the Corporation may to such extent as the court may determine be recovered from the owner in the same manner as expenses of private street works may be recovered as though he had not made the transfer.

(2) In this section the following expressions have the meanings hereby assigned to them:—

“private street” means a street within the meaning of the Private Street Works Act 1892 or land which is deemed to be a private street by virtue of subsection (2) of section 48 of the Act of 1947 ;

“private street works” means works executed under the Private Street Works Act 1892 or in relation to land which is deemed to be a private street as aforesaid works executed under that Act as applied by subsection (3) of the said section 48 ;

“transfer” includes any disposal of land whether by way of sale lease exchange gift or otherwise and “transfers” shall be construed accordingly.

*Miscellaneous*Means of
access to
buildings.

68.—(1) Where the plans of any new building intended or adapted for use as a house have been deposited with the Corporation in pursuance of building byelaws they may by notice prohibit either the erection of the building or the sale letting or occupation thereof (as may be specified in the notice) until sufficient means of communication are provided between the building and a street which either is a highway repairable by the inhabitants at large or has been laid out and constructed in accordance with street byelaws.

(2) Any such notice shall be given to the person by whom or on whose behalf the plans were deposited—

(a) before or together with the notice required to be given under subsection (2) of section 64 of the Act of 1936 ;
or

(b) where the plans have been passed but the erection of the building has not begun before the passing of this Act at any time before the erection thereof has begun ;

and the prohibition imposed by any such notice shall be binding on successive owners of the building.

(3) If it appears to the Corporation to be necessary any such notice may require that the provision of the means of communication shall include the carrying out of constructional work not exceeding that required for a new street by street byelaws.

(4) If any person contravenes any notice under this section he shall be liable to a penalty not exceeding twenty pounds and the Corporation may themselves provide the means of communication to which the notice refers and recover the expenses of so doing from that person :

Provided that this subsection shall have effect subject to the provisions of the Land Charges Act 1925 with respect to the avoidance of any such notice for want of registration as a local land charge.

69.—(1) The owner or occupier of any premises situated under or abutting on a pavement forming part of a street in the borough may with the consent of the Corporation provide means for the admission of light or air to the premises through the pavement. Pavement lights and ventilators.

(2) (a) In giving their consent under this section the Corporation may attach thereto such terms and conditions as they think fit and such terms and conditions shall be binding on successive owners and occupiers.

(b) Any such terms and conditions shall be treated as a local land charge for the purposes of the Land Charges Act 1925.

(3) Anything done before the passing of this Act which would have been lawfully done under this section if done after the passing thereof is hereby ratified.

70.—(1) The Corporation may on the occasion of any public festivity cause flag-poles and pylons to be erected in any street in the borough for the purpose of displaying decorations and may for that purpose provide sockets or slots in or under the surface of any such street. Decorations in streets.

PART IV
—cont.

(2) If any person wilfully removes or damages any flag-pole or pylon erected under this section he shall be liable to a penalty not exceeding five pounds.

(3) The Corporation shall not exercise the powers of this section in a trunk road without the consent of the Minister of Transport.

Restriction
on buildings
under
footways.

71.—(1) After the passing of this Act no part of any building (including the foundations) shall except with the consent of the Corporation be constructed so as to extend under the footway of any street in the borough at a less depth than six feet below the surface of such footway.

(2) Any person aggrieved by the refusal of the Corporation to give their consent under this section may appeal to a court of summary jurisdiction.

(3) Any person who shall contravene the provisions of this section shall be liable to a penalty not exceeding twenty pounds.

(4) Where any person is convicted of an offence under subsection (1) of this section the court by which he was convicted may order him within such time as may be fixed by the order to remove or alter the part of the building so that it no longer contravenes the provisions of this section and if he fails to comply with the order—

(a) he shall be liable to a penalty not exceeding forty shillings for each day on which the failure continues; and

(b) the Corporation after giving him notice of their intention so to do may remove the part of the building concerned and recover from him the expenses incurred by them in so doing:

Provided that he shall not be liable to a penalty for any day after that on which the Corporation have given him notice of their intention to remove the part of the building.

(5) Nothing in this section shall extend or apply to the construction of any building (not being a house or a building to be used as offices) by any railway canal or inland navigation undertakers in exercise of their statutory powers.

Removal of
trees etc.
from streets.

72. If any tree or structure or any part thereof shall fall on or across any street repairable by them so that obstruction is caused or is likely to be caused to persons or vehicles using such street or the footpath thereof the Corporation may remove the same and recover the reasonable cost of so doing from the owner thereof or if such owner was not in beneficial occupation of the land upon which such tree or structure or any part thereof was situated from the occupier thereof.

73.—(1) The Corporation may remove and store any furniture articles goods or materials which may have been placed or dropped (whether accidentally or otherwise) in or upon any street in the borough and which—

PART IV
—cont.
Removal of
furniture
from streets.

(a) may have remained there for more than forty-eight hours ; or

(b) is or are likely to cause an obstruction ;

and the Corporation shall not be liable for any loss or damage caused by such removal or storage.

(2) If the Corporation remove any furniture articles goods or materials under the powers of this section—

(a) they shall if and as soon as it is reasonably practicable so to do notify the person whom they believe to be the owner thereof ; and

(b) they shall not exercise any power to sell any such furniture articles goods or materials whether under section 276 of the Act of 1936 or otherwise until after the expiration of fourteen days from the date of such notification or three months from the day on which they removed the furniture articles goods or materials whichever shall first occur.

74.—(1) No person shall mix mortar or any like substance in any street in the borough repairable by the inhabitants at large except upon such board or in such receptacle as will protect the street from such mortar or substance :

Mixing of
mortar in
streets.

Provided that this section shall not apply to the mixing in any street of mortar or like substance for the purposes of making up maintaining repairing altering or improving such street.

(2) Any person who shall contravene the provisions of this section shall be liable to a penalty not exceeding forty shillings.

PART V

SANITATION AND BUILDINGS

Sewers drains and sanitary conveniences

75.—(1) Where the council—

(a) resolve to construct a sewer in a street or part of a street in the borough being a street or part which is repairable by the inhabitants at large and has not been previously sewered ; and

Recovery
of expenses
of sewerage
public
highway.

(b) include in the resolution a declaration that the construction of the sewer will in the opinion of the council

PART V
—cont.

increase the value of premises fronting adjoining or abutting on the street or that part thereof ;

then the provisions of the Second Schedule to this Act shall have effect as respects the apportionment and recovery by the Corporation of the expenses incurred in constructing the sewer :

Provided that all liabilities under the said schedule in respect of the sewer shall cease at the expiration of two years from the date when the resolution becomes operative if the construction of the sewer is not then complete.

(2) Notice of any such resolution shall be published by the Corporation in a local newspaper circulating in the borough and the resolution shall become operative for the purposes of this section and the said schedule on the date of such publication.

(3) Either—

(a) a copy of any such newspaper containing any such notice ; or

(b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page of any such newspaper bearing the date of its publication and containing any such notice ;

shall be evidence of the publication of the notice and of the date of the publication.

Recovery
of expenses
of sewerage
prospective
street.

76. Where land in the borough in which a length of sewer has been constructed after the passing of this Act at the expense of the Corporation becomes a street (whether repairable by the inhabitants at large or not) then the provisions of the Second Schedule to this Act shall have effect as respects the apportionment and recovery by the Corporation of the expenses incurred in constructing the length of sewer :

Provided that where compensation due to the owner of any land in respect of damage sustained by reason of the construction therein of the length of sewer has been diminished by setting off any sum on account of the enhancement in value of the land by reason aforesaid this section shall not apply to so much of the length of sewer as has been constructed in that land.

Prevention
of evasion
of liabilities
under last two
preceding
sections.

77.—(1) If on a complaint by the Corporation to a court of summary jurisdiction it is proved to the satisfaction of the court—

(a) that by reason of any transfer of land any part of any premises (hereafter in this section referred to as “ the severed part ”)—

(i) has ceased to be included in premises fronting adjoining or abutting on a street or part of a street to which the last but one preceding section of this Act applies ; or

(ii) has been excluded from premises which have subsequently become premises fronting adjoining or abutting on a street to which the last preceding section of this Act applies or has ceased to be included in premises fronting adjoining or abutting on such a street ; and

- (b) that the transfer was intended for the purpose of evading liability under the Second Schedule to this Act imposed by the last but one preceding or the last preceding section (as the case may be) ;

then the court may make such order under the following provisions of this section as it thinks just for the purpose of ensuring that the said liability is not evaded by reason of the transfer.

(2) Any such order may direct—

- (a) that for the purposes of paragraph 2 of the said schedule the severed part shall be deemed to be premises fronting adjoining or abutting on the street or part of the street in question and shall be deemed to have had at the relevant date within the meaning of the said schedule such frontage on the street as may be specified in the order ;
- (b) that for the purposes of sub-paragraph (a) of paragraph 6 of the said schedule the site of a new building erected on the severed part and the land occupied therewith shall be deemed to have such frontage on the street or part of the street as may be specified in the order ;
- (c) that any such amendment shall be made of any entry in the register of local land charges as may be specified in the order including an amendment taking effect as from a past date.

(3) Any order made under paragraph (a) of subsection (2) of this section may also direct that any premises from which the severed part has been excluded or in which it has ceased to be included shall not be deemed to be premises fronting adjoining or abutting on the street or part of the street or shall be deemed to have such frontage as may be specified in the order.

(4) Orders under any provision of subsection (2) of this section may be made on separate complaints made by the Corporation at different times.

(5) For the purposes of this section the expression “ transfer ” includes any disposal of land whether by way of sale lease exchange gift or otherwise.

PART V
—cont.Recovery
of cost of
maintaining
public sewers.

78. Section 24 of the Act of 1936 shall have effect in its application to the borough as if the following were substituted for the proviso to subsection (1) of that section:—

“ Provided that unless in the opinion of the medical officer of health or the sanitary inspector immediate action is necessary notice of the work proposed to be undertaken shall not less than seven days before the work is commenced be given to the owners of any premises known by the local authority to be served by the length of sewer in question and the local authority shall consider any representations as to the need for and the reasonableness of the proposed work which may be made to them by any of those owners within seven days of the service of the notice ”.

Separate
sewers for
foul water
and surface
water.

79. For the purpose of facilitating the disposal of sewage the powers of the Corporation under section 157 of the Public Health Act 1875 shall extend to the making of byelaws requiring any person constructing a new street in the borough to provide separate sewers for foul water drainage and surface water drainage respectively.

Delegation of
power to
examine and
test drains etc.

80.—(1) In lieu of section 48 of the Act of 1936 the following provisions of this section shall if the council by resolution so determine have effect in the borough for such period as may be specified in the resolution either as respects the whole of the borough or as respects such part or parts thereof as may be so specified.

(2) Where it appears to the medical officer or the sanitary inspector that there are reasonable grounds for believing—

- (a) that a sanitary convenience drain private sewer or cesspool is in such a condition as to be prejudicial to health or a nuisance ; or
- (b) that a drain or private sewer communicating directly or indirectly with a public sewer is so defective as to admit subsoil water ;

he may examine its condition and for that purpose may apply any test other than a test by water under pressure and if he deems it necessary open the ground.

(3) If on examination the convenience drain sewer or cesspool is found to be in proper condition the Corporation shall as soon as possible reinstate any ground which has been opened by the medical officer or the sanitary inspector and make good any damage done by him.

Summary
power to
remedy
stopped up
drains etc.

81.—(1) If it appears to the medical officer or the sanitary inspector that on any premises in the borough a drain private sewer watercloset or soil-pipe is stopped up he may by notice

require the owner or occupier of the premises to remedy the defect within forty-eight hours from the service of the notice.

PART V
—cont.

(2) If the notice is not complied with the Corporation may themselves carry out the work necessary to remedy the defect and may subject to the next following subsection recover the expenses of so doing from the person on whom the notice was served :

Provided that where the said expenses do not exceed two pounds the Corporation may if they think fit remit the payment thereof.

(3) In any proceedings under this section the court may inquire—

- (a) whether any requirement contained in a notice served under this section or any work done by the Corporation was reasonable ; and
- (b) whether the expenses incurred by the Corporation in doing the work or any part thereof ought to be borne wholly or partly by the person on whom the notice was served ;

and the court may make such order concerning the expenses or their apportionment as appears to the court to be just in the circumstances of the case :

Provided that the court shall not order the expenses or any part thereof to be borne by any person other than the defendant in the proceedings unless the court is satisfied that that other person has had due notice of the proceedings and an opportunity of being heard.

82.—(1) If any drain or private sewer in the borough—

- (a) is not sufficiently maintained and kept in good repair to the satisfaction of the Corporation ; and
- (b) can in the opinion of the Corporation be sufficiently repaired at a cost not exceeding fifty pounds ;

Power to
repair drains
and private
sewers.

the Corporation may after giving not less than seven days' notice to the owner or owners cause the drain or sewer to be repaired and subject to the next following subsection recover the expenses of so doing so far as they do not exceed fifty pounds from the owner or owners of the drain or sewer in such proportions (if there is more than one owner) as the surveyor may determine :

Provided that where the said expenses do not exceed two pounds the Corporation may if they think fit remit the payment thereof.

PART V
—cont.

(2) In any proceedings under this section the court may inquire—

- (a) whether the drain or sewer in question required repair and whether the work done by the Corporation was reasonable ; and
- (b) whether any apportionment made by the surveyor was fair ;

and the court may make such an order concerning the expenses or their apportionment as appears to the court to be just :

Provided that the court shall not revise any apportionment unless it is satisfied that all persons affected thereby have had due notice of the proceedings and an opportunity of being heard.

Penalty for
improper
construction
or repair of
water-closet
etc.

83.—(1) If a water-closet drain or soil-pipe in the borough is so constructed or repaired as to be prejudicial to health or a nuisance the person who undertook or executed the construction or repair thereof shall unless he shows that the prejudice to health or nuisance could not have been avoided by the exercise of reasonable care be liable to a penalty not exceeding twenty pounds.

(2) A person charged with an offence under this section (hereafter in this section referred to as “the original defendant”) shall upon information duly laid by him and on giving to the prosecutor not less than three clear days’ notice of his intention be entitled to have any other person being his agent servant or workman to whose act or default he alleges the offence was due brought before the court at the time appointed for the hearing of the charge and—

- (a) if after the commission of the offence has been proved the original defendant proves that the offence was due to the act or default of that other person that other person may be convicted of the offence ; and
- (b) if the original defendant further proves that he used all due diligence to secure that the watercloset drain or soil-pipe in question was so constructed or repaired as not to be prejudicial to health or a nuisance he shall be acquitted of the offence.

(3) Where the original defendant seeks to avail himself of the provisions of subsection (2) of this section—

- (a) the prosecutor as well as the person whom the original defendant charges with the offence shall have the right to cross-examine the original defendant if he gives evidence and any witness called by him in support of his pleas and to call rebutting evidence ; and
- (b) the court may make such order as it thinks fit for the payment of costs by any party to the proceedings to any other party thereto.

84. For the purposes of section 44 of the Act of 1936 any part of a building in the borough being a part occupied as a dwelling shall be treated as a separate building and where two or more parts of such a building are occupied as dwellings by separate families each such part shall be treated as a separate building:

PART V
—cont.

Closet
accommoda-
tion for
separate
dwellings.

Provided that where any part of a building has been let for occupation as a separate dwelling without the consent in writing of the owner of the building the person so letting such part of the building shall for the purposes of this section be deemed to be the owner.

85. The Corporation may at the request in writing of the owner or occupier of any premises in the borough undertake the cleansing of any drains water-closets sinks or gullies in or connected with the premises and may make such charge if any for so doing as they think fit.

Power to
cleanse
drains etc.

86.—(1) The Corporation may by notice require a contractor engaged in or upon any building operations or the construction or reconstruction of any works in the borough within such time as may be specified in the notice—

Sanitary
conveniences
for persons
employed on
construction
work.

(a) to provide in connection therewith sufficient and satisfactory accommodation in the way of sanitary conveniences for the accommodation of the workpeople employed thereon; and

(b) where persons of both sexes are employed in or in connection with the operations or works to provide separate accommodation as aforesaid for persons of each sex;

if it is reasonably practicable so to do:

Provided that this section shall not apply to building operations or works to which section 107 or section 108 of the Factories Act 1937 applies.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

87.—(1) Where after the passing of this Act any person shall—

Abandoned
drains to
be cut off.

(a) reconstruct any drain which communicates with any sewer or other drain;

(b) lay such drain in a new position; or

(c) on the occasion of the execution of any works to or in connection with such drain permanently discontinue the use of such drain;

such person shall cause any drain or portion of drain thereby rendered unnecessary to be cut off and sealed at each end.

PART V
—cont.

(2) Any person who knowingly contravenes the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Buildings and structures.

Ruinous and
dilapidated
buildings and
neglected
sites.

88.—(1) Paragraphs (b) and (ii) of subsection (1) of section 58 of the Act of 1936 and so much of subsection (2) of that section as relates to those paragraphs shall cease to have effect in the borough and the following provisions of this section shall have effect in lieu thereof.

(2) Where a building or part of a building in the borough is by reason of its ruinous or dilapidated condition seriously detrimental to the amenities of the neighbourhood the Corporation may by notice require the owner thereof within a reasonable time specified in the notice—

(a) to execute such works of repair or restoration; or

(b) if he so elects to take such steps for demolishing the building or any part thereof and removing any rubbish or other material resulting from or exposed by the demolition;

as may be necessary for remedying the cause of complaint.

(3) Where rubbish or other material resulting from or exposed by the demolition or collapse of a building or part of a building in the borough is lying on the site of the building or that part thereof or on any land occupied with the building and by reason thereof the site or land is in such a condition as to be seriously detrimental to the amenities of the neighbourhood the Corporation may by notice require the owner of the site or land within a reasonable time specified in the notice to take such steps for removing the rubbish or material as may be necessary for remedying the cause of complaint.

(4) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

(5) Notwithstanding anything in subsection (3) of section 276 of the Act of 1936 as applied by this Act that section shall apply to all rubbish or other material removed by the Corporation under this section.

(6) In this section the expression “building” includes any structure.

New building
overreaching
adjoining
chimneys.

89.—(1) Where after the passing of this Act—

(a) any person erects or raises a building in the borough (in this section referred to as the “taller building”) to a greater height than an adjoining building; and

(b) any chimneys or flues of the adjoining building are in the party wall or in an external wall of the adjoining building ;

the Corporation may by notice—

(i) require that person within such time as may be specified in the notice to build up those chimneys and flues (if it is reasonably practicable so to do) so that the top thereof will be of the same height as the top of the chimneys of the taller building or the top of the taller building whichever is the higher ; and

(ii) require the owner or occupier of the adjoining building to allow the first-mentioned person to enter on that building and carry out such work as may be necessary to comply with the notice served on him.

(2) Any person aggrieved by a requirement of the Corporation under this section may appeal to a court of summary jurisdiction.

(3) If any person fails to comply with a notice under this section he shall be liable to a penalty not exceeding twenty pounds and in the case of a notice served under paragraph (i) of subsection (1) of this section the Corporation may themselves execute such work as may be necessary to comply with the notice and recover the expenses of so doing from the person on whom the notice was served.

90.—(1) Where plans for the extension or erection of a building used or to be used for manufacturing or other purposes are in accordance with building byelaws deposited with the Corporation and the plans show that it is proposed to construct a chimney for carrying smoke or steam or noisome or deleterious gases or effluvia from the building the Corporation shall reject the plans unless they are satisfied that the height of the chimney as shown on the plans will be sufficient to prevent it being prejudicial to health or a nuisance having regard to—

Height of new
chimneys.

(a) the purpose of the chimney ;

(b) the position and description of buildings near thereto ;

(c) the levels of the neighbouring ground ; and

(d) any other matters requiring consideration in the circumstances.

(2) If the Corporation reject the plans under the authority of this section the notice given in pursuance of subsection (2) of section 64 of the Act of 1936 shall specify that the plans have been so rejected.

(3) This section shall not apply to a chimney of a generating station consent to the construction of which has been given in accordance with the provisions of the Electricity (Supply) Acts 1882 to 1936 by the Minister of Fuel and Power.

PART V
—*cont.*

Power to
order
alteration
of domestic
chimneys.

91.—(1) If a court of summary jurisdiction is satisfied upon a complaint by the Corporation that any smoke gas or vapour from any chimney flue or pipe of a building or structure forming part of or within the curtilage of a house in the borough is prejudicial to the health of any of the inhabitants of the borough or a nuisance the court may make an order requiring the owner of the chimney flue or pipe within such time as may be specified in the order—

(a) to cause it to be raised to a height so specified ; or

(b) to cause such other means for remedying the cause of complaint to be adopted as the court thinks fit:

Provided that the court shall not make an order under this section unless it is satisfied that the work to be done in pursuance of the order will not involve an expenditure exceeding fifty pounds.

(2) If in any proceedings under subsection (1) of this section it appears to the court that the complaint is due to a reason other than—

(a) the height of such chimney flue or pipe ; or

(b) a structural defect in such building or structure ;

the court shall make an order requiring the person responsible for the nuisance to remedy the cause of complaint:

Provided that the court shall not make an order under this subsection in respect of any person other than the defendant in the proceedings unless the court is satisfied that that other person has had due notice of the proceedings and an opportunity of being heard.

(3) If any person fails to comply with an order made under this section he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

Cellars and
rooms below
subsoil water
level.

92.—(1) No person shall in or in connection with any house shop or office in the borough construct without the consent of the Corporation any cellar or room the floor level of which is lower than the ordinary level of the subsoil water on under or adjacent to the site of the house shop or office.

(2) Any consent under this section may be given subject to such conditions as to the construction or use of the premises as may be specified therein and any such conditions shall be binding on successive owners of the house shop or office.

(3) Any person aggrieved by the refusal of the Corporation to give their consent under this section or by any conditions attached to such consent may appeal to a court of summary jurisdiction.

(4) If any person constructs a cellar or room in contravention of subsection (1) of this section or any conditions attached to any consent under this section—

(a) he shall be liable to a penalty not exceeding twenty pounds ; and

(b) the Corporation may by notice require him within such reasonable time as may be specified in the notice either to alter the cellar or room so that its construction will no longer contravene the said subsection or conditions or if he so elects to fill it in or otherwise make it unusable and if he fails to comply with any such notice the Corporation may themselves fill in the cellar or room or otherwise make it unusable and recover from him the expenses of so doing.

(5) If any person uses a cellar or room in contravention of any such conditions he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(6) The provisions of the last two foregoing subsections shall have effect subject to the provisions of the Land Charges Act 1925 as to the avoidance for want of registration as a local land charge of any prohibition or restriction imposed by virtue of any such conditions.

(7) Nothing in this section shall apply to the construction of any cellar or room in connection with any shop or office which forms part of a railway station.

93.—(1) Every house erected in the borough after the passing of this Act shall be provided with sufficient and suitable accommodation for the storage of food and any other house in the borough not so provided shall if reasonably practicable be so provided within one month from the service by the Corporation on the owner thereof of a notice requiring it to be so provided. Food storage accommodation.

(2) Any person aggrieved by a requirement imposed by a notice under the preceding subsection may appeal to a court of summary jurisdiction.

(3) If any house required to be provided as aforesaid is occupied when not so provided the owner thereof shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(4) The owner of any house on whom a notice is served under subsection (1) of this section shall have power notwithstanding any lease or other agreement to enter the house and carry out such work as may be necessary to comply with the notice.

PART V
—cont.

(5) For the purposes of this section—

- (a) the expression “house” includes any part of a building which is occupied or intended to be occupied as a separate dwelling ;
- (b) the conversion of a building into two or more dwellings shall be deemed to be the erection of each of those dwellings ; and
- (c) a house the erection whereof was commenced before the passing of this Act shall not be deemed to have been erected after the passing of this Act :

Provided that where any part of a building has been let for occupation as a separate dwelling without the consent of the owner of the building the person so letting that part of the building shall be deemed to be the owner.

Separate
approach
for separate
tenements.

94.—(1) The powers of the Corporation under section 6 of the Housing Act 1936 shall include power to make byelaws for requiring in the case of houses let in lodgings or occupied by members of more than one family a separate approach to each room or tenement separately occupied without passing through any other room or tenement.

(2) No byelaw made under this section shall impose any requirement on the owner of a house which without his express consent is let in lodgings or for occupation by more than one family.

Extension of
powers under
section 9 of
Housing Act
1936.

95.—(1) A house in the borough which is occupied or is of a type suitable for occupation by persons of the working classes shall be deemed for the purposes of section 9 of the Housing Act 1936 to be not in all respects fit for human habitation—

- (a) if it is not kept repaired and painted sufficiently to prevent the dilapidation thereof and to secure reasonable amenities for the occupiers thereof ; or
- (b) if the interior surface of the walls thereof is not papered or painted with oil-bound water paint or distempered with washable distemper sufficiently as aforesaid.

(2) On an appeal to the county court under section 15 of the said Act by a person aggrieved by a notice requiring the execution of works to remedy the defects referred to in the preceding subsection the court shall take into consideration—

- (a) in the case where the person aggrieved is a lessee or agent for a lessee the length of the unexpired period of the lease ;
- (b) the period for which the house is likely to continue occupied ;

(c) the expenditure incurred on the house during the preceding three years by the person having control of the house or the owner thereof ;

(d) in the case of any house the rent of which is subject to control in pursuance of the Rent and Mortgage Interest Restrictions Acts 1920 to 1939 the financial return accruing to the owner in respect of his ownership of the house ; and

(e) whether the condition of the house is or is not due to the wilful default or neglect of the occupier.

(3) In this section the expressions “ house ” “ owner ” and “ person having control of the house ” have the same meanings as in the Housing Act 1936.

96.—(1) Where plans of a house are in accordance with building byelaws deposited with the Corporation the Corporation may reject the plans if they do not show that the house will be provided with a bathroom containing a fixed bath. Provision of
bathrooms.

(2) If the Corporation reject the plans for non-conformity with this section the notice given in pursuance of subsection (2) of section 64 of the Act of 1936 shall specify that the plans have been rejected on account of such non-conformity.

Filthy or verminous premises or articles

97.—(1) If the Corporation serve notice under subsection (3) of section 83 of the Act of 1936 on the owner and occupier of any premises requiring that they shall be allowed to employ gas for the purpose of destroying vermin on the premises— Power to
require
vacation of
premises
during
fumigation.

(a) the notice to the occupier may also require that the premises shall as from such date as may be specified in the notice be vacated until the Corporation give the occupier further notice that the premises can safely be re-occupied ; and

(b) the Corporation may also serve notice on the occupiers of any other premises having any floor wall or ceiling contiguous with the first-mentioned premises or into which there is reason to apprehend that the gas may penetrate requiring that those other premises shall be vacated as aforesaid.

(2) No person shall be required to vacate any premises under this section for any period unless shelter or other accommodation has been provided for him by the Corporation free of charge for that period and any notice given under this section shall specify the shelter or accommodation so provided.

PART V
—cont.

(3) Any person aggrieved by a requirement of the Corporation under this section may appeal to a court of summary jurisdiction.

(4) If any person fails to comply with a notice requiring the vacation of any premises under this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding ten shillings.

(5) The Corporation may pay to any person vacating premises in pursuance of a notice under this section such reasonable allowance as they think fit towards his expenses in removing from and returning to the premises.

(6) The Rent and Mortgage Interest Restrictions Acts 1920 to 1939 shall not be deemed to cease to apply to any house or premises by reason only of the fact that the house or premises has or have been vacated in compliance with a notice served under this section.

Prohibition
of sale of
verminous
articles.

98.—(1) No dealer shall in the borough—

- (a) prepare for sale ;
- (b) sell or offer or expose for sale ; or
- (c) deposit for sale or preparation for sale ;

any household article if it is to his knowledge verminous or if by taking reasonable precautions he could have known it to be verminous.

(2) If any household article which is verminous is on any premises in the borough—

- (a) being prepared or offered by a dealer for sale ; or
- (b) exposed by a dealer for sale or deposited by a dealer for sale or preparation for sale ;

the medical officer or the sanitary inspector may cause the article to be disinfested or destroyed as the case may require and if necessary for that purpose to be removed from the premises and the Corporation may recover from the dealer the expenses incurred by the medical officer or the sanitary inspector in taking any action under this subsection.

(3) If any person contravenes the provisions of subsection (1) of this section he shall be liable to a penalty not exceeding twenty pounds.

(4) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this section shall be provisions which it is the duty of the Corporation to enforce.

(5) For the purposes of this section—

PART V
—cont.

- (a) the expression “dealer” means a person who trades or deals in any household article;
- (b) the expression “household article” means an article of furniture bedding or clothing or any similar article;
- (c) the expression “preparation for sale” shall not include disinfestation.

PART VI NUISANCES

99.—(1) The Corporation may make byelaws for regulating the tipping of spoil and refuse and for prohibiting the use of any spoil or refuse tip so as to be a nuisance to the occupiers of premises in the neighbourhood thereof. Tipping of spoil and refuse.

(2) Byelaws made by virtue of this section may—

- (a) contain provisions for imposing on persons offending against the byelaws penalties not exceeding fifty pounds for each offence and in the case of a continuing offence a daily penalty not exceeding ten pounds;
- (b) provide that any spoil or refuse tip placed kept or used in breach of the byelaws shall be a statutory nuisance for the purpose of Part III of the Act of 1936.

(3) No byelaw under this section shall extend to regulate or control the tipping of spoil or refuse—

- (a) by railway canal or inland navigation undertakers for the purpose of constructing widening or maintaining any railway canal inland navigation dock or wharf works; or
- (b) by the Severn River Board for the purpose of land drainage or flood alleviation.

100.—(1) As from the appointed day no person shall instal in any premises in the borough any furnace for steam raising or for any manufacturing or trade purpose unless the furnace is so far as practicable capable of being operated continuously without emitting smoke. Smoke from industrial furnaces.

(2) If any person contravenes the provisions of the foregoing subsection he shall be liable to a penalty not exceeding ten pounds and if after there has been conviction of an offence of installing a furnace in contravention of those provisions any person uses that furnace he shall unless it has been altered so as to comply with those provisions be liable to a penalty not exceeding five pounds for each day on which he so uses the furnace:

Provided that a person so using such furnace shall not be liable to the last-mentioned penalty unless he himself was convicted of the said offence or if he was not so convicted unless

PART VI
—cont.

prior to such use or the continuance of the use he had received notice from the Corporation that there had been a conviction in respect of the installation of such furnace.

(3) If a person before installing in any premises a furnace to which this section applies submits to the Corporation a plan and specification of the proposed furnace and furnishes them with such other information in regard thereto as they may reasonably require the Corporation may within six weeks from the receipt of the plan specification and information serve notice upon him stating whether or not they are satisfied that the furnace is so far as practicable capable of being operated as aforesaid and—

(a) if the notice states that they are so satisfied ; or

(b) if they do not serve any notice under this subsection before the expiration of the said six weeks ;

no proceedings shall be taken against that person under this section in respect of the installation of the furnace in accordance with the plan specification and information so submitted and furnished.

(4) Before serving a notice under this section stating that they are not satisfied that a furnace is so far as practicable capable of being operated as aforesaid the Corporation shall consult the Minister of Fuel and Power.

(5) In determining for the purposes of this section whether a furnace is so far as practicable capable of being operated as aforesaid—

(a) a court in any proceedings under this section ; and

(b) the Corporation on considering a plan specification and other information received under subsection (3) of this section ;

shall have regard to cost and to local conditions and circumstances.

Discharge of
steam and
waste gas.

101.—(1) No person shall cause or permit to be discharged from any premises in the borough so as to be prejudicial to health or a nuisance—

(a) any steam or waste gas ejected from any stationary engine or the boilers or condensers thereof ; or

(b) any condensing water above a temperature of one hundred and ten degrees Fahrenheit so ejected ; or

(c) any spent or ejected steam arising or produced in the course of any trade or business.

(2) If any person contravenes the provisions of the foregoing subsection he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) Nothing in this section shall apply to steam gas or water discharged from a railway locomotive.

PART VI
—cont.

102.—(1) A stationary internal combustion engine shall not be used in the borough unless an effectual silencer is provided and used on the exhaust of the engine.

Silencers for
internal
combustion
engines.

(2) If any person uses any such engine in contravention of the foregoing subsection or causes or permits any such engine to be so used the Corporation may give him notice that the engine is being or has been so used and if after the elapse of such time from the service of the notice as may be reasonably sufficient for remedying the cause of complaint he uses the engine as afore-said or causes or permits it to be so used he shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings.

(3) An authorised officer of the Corporation shall on producing if so required some duly authenticated document showing his authority have the right—

- (a) to enter at all reasonable hours any premises on which there is reason to believe that any such engine is being or has been used in contravention of subsection (1) of this section ; and
- (b) to inspect and test any silencer on the exhaust of any such engine found on the premises and for that purpose to require such silencer to be taken off and removed ;

and any expenses incurred under this subsection by any such officer may be recovered by the Corporation from the occupier of the premises if there is found on the premises any such engine which is not provided with an effectual silencer on the exhaust thereof :

Provided that this subsection shall not apply to any premises belonging to railway undertakers and used by them for the purpose of their railway undertaking.

PART VII

INFECTIOUS DISEASES

103. In this Part of this Act the expression “notifiable disease” means—

Definition of
notifiable
disease.

- (a) any notifiable disease as defined by section 343 of the Act of 1936 ; and
- (b) any infectious disease to which section 144 of that Act for the time being applies in the borough by virtue of regulations made under section 143 thereof.

PART VII

—cont.

Entry into
premises
in case of
notifiable
disease.

104.—(1) If it is shown to the satisfaction of a justice of the peace on sworn information by the medical officer in writing—

(a) that in any premises in the borough there is a person who is or has been suffering from a notifiable disease ; and

(b) that admission to the premises or examination of that person has been refused or that refusal is apprehended or that the case is one of urgency or that an application for admission would defeat the object of the entry ; the justice may by warrant under his hand authorise the medical officer to enter the premises if need be by force and examine any person found thereon :

Provided that no such warrant shall authorise the medical officer—

(i) to enter any premises except between the hours of seven in the morning and ten in the evening ; or

(ii) to examine a person who is already under the treatment of a registered medical practitioner except with the consent of that practitioner.

(2) On entering any premises by virtue of a warrant issued under this section the medical officer may take with him such other persons as may be necessary.

(3) Every warrant granted under this section shall continue in force until the purpose for which the entry is necessary has been satisfied.

Information
to be furnished
by occupier
in case of
notifiable
disease.

105.—(1) On the application of the medical officer the occupier of any building in the borough which is used for human habitation and in which there is or has been any person suffering from a notifiable disease shall furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

(2) If any person required to furnish information under this section fails to furnish it or knowingly furnishes false information he shall be liable to a penalty not exceeding forty shillings.

(3) In this section the expression “ occupier ” includes—

(i) a person having the charge management or control of the building or of the part of the building in which the person suffering from a notifiable disease is or has been ; and

(ii) in the case of a building the whole of which is ordinarily let out in separate tenements or in the case of a lodging house the whole of which is ordinarily let to lodgers the person receiving the rent payable by the tenants or lodgers either on his own account or as the agent of another person.

106. If with a view to preventing the spread of—

- (a) a notifiable disease ; or
- (b) a milk-borne disease as defined in section 37 of the Food and Drugs Act 1938 ; or
- (c) food poisoning ;

PART VII
—cont.

Compensation
for stopping
employment
to prevent
spread of
disease.

the medical officer requests in writing any person to discontinue his employment the Corporation may if they think fit compensate him for any loss occasioned by his compliance with the request.

107.—(1) If the medical officer certifies—

- (a) that any person is suffering from tuberculosis of the respiratory tract and is in an infectious state ; and
- (b) that he is occupied in the cooking preparation or handling of food in the borough intended for consumption by persons other than himself or members of his household ; and
- (c) that his continuance in that occupation would in the judgment of the medical officer be a danger to the health of other persons ;

Prohibition of
tuberculous
persons from
handling food.

the medical officer or any other person authorised in that behalf by the Corporation may request him in writing to discontinue his occupation as aforesaid.

(2) If any person requested as aforesaid complies with the request the Corporation may if they think fit compensate him for any loss occasioned by his compliance with the request.

(3) If any person requested as aforesaid fails to comply with the request a court of summary jurisdiction may on the application of the Corporation order him to comply with the request and may by any such order if it thinks fit direct that such compensation (if any) as it thinks equitable shall be paid to him by the Corporation.

(4) If any person fails to comply with any such order he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(5) This section shall not apply to any employment or occupation to which the Public Health (Prevention of Tuberculosis) Regulations 1925 apply.

PART VIII

PARKS CEMETERIES AND OTHER MUNICIPAL PROPERTY

Power to let
parks etc.
for games.

108. When any part of a park or pleasure ground provided by or under the management and control of the Corporation is set apart by them under section 9 (Power to set apart lands for games) of the Leamington Corporation Act 1896 for the purpose of cricket football archery lawn tennis or any other game the Corporation may permit the exclusive use by any club or other body of persons of—

- (a) any portion of the part set apart as aforesaid ; and
- (b) the whole or any part of any pavilion convenience refreshment room or other building provided under that section ;

subject to such charges and conditions as the Corporation think fit:

Provided that nothing in this section shall empower the Corporation to permit at one and the same time the exclusive use of—

- (i) more than one-third of the area of any park or pleasure ground ; or
- (ii) more than one-quarter of the total area of all the parks and pleasure grounds provided by them or under their management and control.

Power of
development
of lands at
Newbold
Comyn Farm.

109.—(1) The Corporation may purchase by agreement any lands adjoining any part of Newbold Comyn Farm (which together with any lands acquired under the powers of this subsection are in this section referred to as “the said lands”) or convenient to be held therewith and may enter into and carry into effect any contracts or agreements necessary or proper for the purpose and the Corporation shall hold and may use manage control and develop the said lands for the purposes of and subject to and in accordance with the powers and provisions contained in this section and shall be deemed to have acquired them for those purposes and subject to and in accordance with those powers and provisions.

(2) The Corporation may exercise the following powers with respect to the said lands and all buildings now or hereafter erected thereon (which buildings are in this section referred to as “the said buildings”) (that is to say):—

- (a) they may fence and improve the said lands and repair improve and extend the said buildings and lay out form fence construct and maintain grounds for games sports entertainments amusements exhibitions displays recreation and other purposes and also gardens roads riding

tracks footpaths ways walks fences plantations
ornamental lakes and spaces for physical drill and
exercise and may plant trees and shrubs for the purpose
of shelter or ornament and erect and provide buildings
shops enclosures pavilions stands lavatories kiosks and
seats ;

(b) they may close the said lands and buildings against the public and make and recover such reasonable charges as they may think fit for admission to and for the use of the whole or any part of the said lands and buildings and the enclosures pavilions stands lavatories and kiosks therein and for the use of chairs and for parking motor vehicles and other vehicles in any part of the said lands and buildings other than any part of the said lands dedicated as a public highway or added to a highway under paragraph (h) of this subsection ;

(c) (i) they may subject to the provisions of all Acts relating thereto sell and supply or enter into any agreement or arrangement with any person for the sale and supply or let any rights (exclusive or otherwise) of selling and supplying refreshments to the public resorting to and using any of the said lands and buildings to which the public have access and may erect or permit the erection for those purposes of such buildings and the enclosure and provision of such spaces and accommodation as may be requisite or necessary for adequate and proper catering ;

(ii) they or any person appointed by them in that behalf may apply for and hold licences for the sale of beer or intoxicating liquors or of tobacco for the purposes of this paragraph ;

(d) they may let for such term not exceeding twenty-one years and subject to such covenants and conditions as they think fit the whole or any part or parts of the said lands and buildings ;

(e) they may set apart and appropriate the whole or any portion of the said lands and buildings for such purposes of public utility instruction or benefit for such periods and on such terms and conditions as they may think fit ;

(f) they may in any portion or portions of the said lands lay out and maintain golf courses bowling greens cricket hockey and football grounds tennis courts and croquet lawns and grounds for other games and recreation and provide the necessary proper and convenient houses

PART VIII
—cont.

pavilions works buildings garages equipment conveniences appliances and apparatus for use in connection therewith and may do all such acts and employ such persons as may be required for the purposes of this section and may make and recover such reasonable charges for admission to and use of such golf courses bowling greens cricket hockey and football grounds tennis courts and croquet lawns and grounds for other games and recreation and the houses pavilions works buildings garages equipment conveniences appliances and apparatus in connection therewith respectively and for the right of bathing and fishing as they may from time to time prescribe :

Provided that the Corporation shall not in connection with any garages provided by them themselves undertake repairs to or the rendering of services for motor vehicles (other than vehicles belonging to the Corporation) or the supply of fuel or spare parts for use in or in connection with such vehicles ;

- (g) (i) they may from time to time let to any club company or body of persons any portions of the said lands which may have been or which may be intended to be laid out and maintained as golf courses bowling greens cricket hockey and football grounds tennis courts and croquet lawns and grounds for other games and recreation together with the houses pavilions works buildings garages equipment conveniences appliances and apparatus (if any) provided in connection therewith ;
- (ii) any lessee or tenant of the Corporation under this paragraph shall have the like powers of making and recovering reasonable charges for admission to and the use of the golf courses bowling greens cricket hockey and football grounds tennis courts croquet lawns and grounds for other games and recreation and the houses pavilions works buildings garages equipment conveniences appliances and apparatus as are conferred upon the Corporation by this subsection ;
- (h) they may make construct and maintain streets roads sewers and drains on any part of the said lands and may if they think fit dedicate any such street or road to public use or utilise any part of the said lands for the widening and improvement of a highway ;
- (i) they may appoint and pay officers and servants to perform any services in connection with the said lands and buildings and may remove such officers and servants ;

- (j) they may provide and maintain bathing cabins huts and tents thereon and make and recover reasonable charges for the use of such bathing cabins huts and tents ; and
- (k) they may make and recover reasonable charges for the use of the said lands for the purposes of camping and for the erection of bathing cabins huts and tents thereon.

(3) (a) The Corporation may undertake the cultivation of the whole or any part of the said lands for agricultural purposes until required for the purposes referred to in the foregoing provisions of this section.

(b) For the purposes of this section the Corporation may purchase lease erect and maintain buildings on the said lands and may provide purchase sell and dispose of all stock plant material apparatus appliances and things and generally do all acts and things necessary or expedient for the said purposes or incidental thereto as they shall think fit.

(c) The Corporation may employ officers and servants in connection with and for the purposes aforesaid.

110. No power conferred upon the Corporation by the preceding sections of this Part of this Act shall be exercised in such a manner— Saving for trusts etc.

- (a) as to be at variance with any trust subject to which any land or building is held managed or controlled by the Corporation without an order of the High Court or of the Charity Commissioners or of the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of the donor or that other person ; or
- (b) as to contravene any covenant or condition subject to which a gift or lease of any land or building has been accepted by or granted to the Corporation without the consent of the donor grantor lessor or other person entitled in law to the benefit of the covenant or condition.

111.—(1) The Corporation may agree with any person in consideration of the payment of a capital sum by him to maintain for a period fixed by the agreement a grave or tombstone in a cemetery provided by the Corporation and the following provisions shall apply in relation to any such agreement:— Agreements to maintain graves and tombstones.

- (a) the said sum shall subject to the next following paragraph and any other enactment authorising its application in some other manner be invested in statutory securities ;

PART VIII
—cont.

- (b) if and in so far as the cost of maintaining the grave or tombstone in accordance with the agreement exceeds in any year the interest received on the said sum the cost shall be defrayed out of the capital of the said sum ;
- (c) at the expiration of the period fixed by the agreement for the maintenance of the grave or tombstone the Corporation may apply the capital of the said sum or so much thereof as has not been expended under the last foregoing paragraph in any manner in which capital money may properly be applied by them under any enactment ;
- (d) the amount of the capital of the said sum and the interest thereon shall be shown separately in the accounts of the Corporation relating to the cemetery.

(2) In this section the expression—

- “ cemetery ” includes a burial ground and a crematorium ;
- “ grave ” includes a grave space niche or urn ;
- “ tombstone ” includes a monument or other memorial of a deceased person.

Extension of
power to
maintain
burial grounds.

112.—(1) The powers of the Corporation in relation to a burial ground provided by them or a closed or disused burial ground maintainable by them shall include power to put and keep in order any grave or tombstone therein subject to the following provisions:—

(a) Before exercising the powers of this section the Corporation shall give notice of their intention so to do—

(i) by publishing the notice once in each of two successive weeks in a local newspaper circulating in the borough with an interval between each publication of not less than six clear days ; and

(ii) by displaying the notice in a conspicuous position in the burial ground ;

(b) Any such notice shall—

(i) contain a description of the works intended to be executed ; and

(ii) specify the date on which it is intended that those works will be commenced which shall not be earlier than the fourteenth day after the last publication of the notice in a newspaper as aforesaid or the twenty-first day after the notice is first displayed in the burial ground as aforesaid ; and

(iii) state the effect of paragraph (c) of this subsection ;

- (c) If notice of objection to the execution of any such works and of the ground thereof is given to the Corporation before the date so specified and is not withdrawn before the expiration of fourteen days from that date the works to which the objection relates shall not be executed without the consent of the Minister.

(2) In this section the expression—

“ burial ground ” includes a cemetery ;

“ grave ” includes a grave space ;

“ tombstone ” includes a monument or other memorial of a deceased person.

113.—(1) In the event of the Corporation establishing in pursuance of sections 19 and 20 of the Civil Aviation Act 1949 an aerodrome and any ancillary business in connection therewith (in this section referred to as “ the aerodrome undertaking ”) they may either—

- (a) themselves manage the aerodrome undertaking making such reasonable charges in respect thereof as they think fit ; or
- (b) subject to the provisions of subsection (6) of the said section 19 let it or any part thereof for such consideration and on such terms and conditions as they think fit :

Provided that nothing in this subsection shall authorise any variation of a scale of charges approved or prescribed by the Minister of Civil Aviation in pursuance of powers conferred on him by or under the said Act.

(2) The Corporation may make byelaws with respect to the aerodrome undertaking and for maintaining order in and for regulating the use of any premises used in connection therewith.

(3) The aerodrome undertaking shall be in the same relation to the Minister of Civil Aviation and subject to the like control by him under the Civil Aviation Act 1949 as if this Act had not been passed.

114. The powers of the Corporation under subsection (2) of section 44 of the Public Health Acts Amendment Act 1890 shall be extended and shall be deemed always to have been extended so as to be exercisable by the Corporation with respect to the provision of boats along the part of the river Leam situate within the borough.

PART VIII
—cont.

Provision of
orchestra and
refreshments
in Royal
Pump Room
and gardens.

115. The powers of the Corporation under the Leamington Priors Local Board (Extension of Powers) Act 1868 shall be extended and be deemed always to have been extended to enable the Corporation—

(a) to provide an orchestra ; and

(b) to sell or arrange for the provision and sale of refreshments of all kinds subject to the provisions of all enactments relating thereto ;

in the Royal Pump Rooms Bath Rooms premises and public gardens or pleasure grounds maintained by the Corporation by virtue of the said Act of 1868.

Amendment of
section 14 of
Leamington Priors
Local Board
(Extension of
Powers) Act 1868.

116. Section 14 (Sale &c. of surplus land) of the Leamington Priors Local Board (Extension of Powers) Act 1868 shall have effect as if the provisos were omitted therefrom.

Amendment of
section 5 of
Leamington
Corporation
Act 1896.

117. Section 5 (Jephson Gardens to vest in the Corporation) of the Leamington Corporation Act 1896 shall have effect as if—

(a) in subsection (7)—

(i) for the words “one penny” there were substituted the words “three pence” ; and

(ii) at the end of that subsection there were inserted the words “Provided also that the Corporation shall not charge a sum exceeding two pence per day for each person for admission to the Jephson Gardens before the first day of January nineteen hundred and sixty-two” ;

(b) after subsection (7) there were inserted the following subsections :—

“(7A) Notwithstanding anything contained in the foregoing subsection the Corporation may if they think fit charge a sum not exceeding two shillings per day or such greater sum as may from time to time be approved by the Minister for each person for admission to the Jephson Gardens after the hour of six in the evening on any day other than Sunday during a period not exceeding ten weeks in the months of July to October in any year when entertainments are provided therein and during such periods the Corporation may exclude from the Jephson Gardens all persons who do not pay the sum demanded.

(7B) The Corporation or any person appointed by them in that behalf may apply for and hold licences for the sale of beer or intoxicating liquors or of tobacco in the Jephson Gardens”.

PART VIII
—cont.

PART IX

PUBLIC ORDER AND PUBLIC SAFETY

118.—(1) For the purpose of securing public order or public safety or preventing congestion of traffic the Corporation may in any case of emergency or on any occasion on which it is likely by reason of some special attraction that any street in the borough will be thronged or obstructed cause barriers to be erected in any street in the borough and kept in position for so long as may be necessary for that purpose: Barriers in streets.

Provided that the Corporation shall not exercise the powers of this subsection—

- (a) as respects any trunk road without the consent of the Minister of Transport; or
- (b) as respects any street belonging to or repairable by any railway dock canal inland navigation or statutory passenger road transport undertakers and forming the approach to any station dock wharf or depot of those undertakers or so as to obstruct or interfere with the access to or exit from any station dock wharf or depot of any such undertakers without their consent; or
- (c) so as to deprive foot-passengers bona fide going to or from any building or land abutting on the street of reasonable access to the building or land.

(2) The consent of any undertakers under proviso (b) to the preceding subsection shall not be unreasonably withheld and any question whether or not it is unreasonably withheld shall be determined by the Minister of Transport.

(3) For the purpose of erecting barriers in a street under this section the Corporation may provide slots or sockets in or under the surface of the street.

(4) If any person wilfully removes or damages any barrier erected under this section he shall be liable to a penalty not exceeding five pounds.

119.—(1) As from the appointed day no person shall commence to erect in the borough a stand capable of affording seating or standing accommodation for twenty or more persons at any one time unless he has given notice to the Corporation of Safety of stands.

PART IX
—cont.

his intention so to do accompanied by a plan and section of the stand and such further particulars as the Corporation may reasonably require and the Corporation have approved the erection of the stand under this section.

(2) Within five weeks from the receipt of such a notice from any person the Corporation may give him notice that they approve the erection of the stand but only subject to—

(a) such modifications of the plan section and particulars submitted to them ; and

(b) compliance with such requirements as to maintenance and otherwise ;

as may be specified in the notice being modifications and requirements which appear to the Corporation to be necessary for securing the stability of the stand and protection against fire and generally for securing the safety of persons to be accommodated thereon.

(3) If a notice given under subsection (1) of this section states the period for which it is proposed that the stand will remain erected the Corporation shall have regard to that statement in considering what modifications and requirements shall be prescribed by a notice under subsection (2) of this section but may by the last-mentioned notice require that the stand shall be pulled down and removed within such time from the expiration of that period as may be specified in the notice or such further time as the Corporation may allow.

(4) The Corporation may at any time within the said five weeks give notice that they approve the erection of the stand in accordance with the plan section and particulars submitted to them and if within the said five weeks the Corporation have not given notice under subsection (2) of this section they shall be deemed for the purposes of this section to have so approved the erection of the stand.

(5) Any person aggrieved by a requirement or other decision of the Corporation under this section may appeal to a court of summary jurisdiction.

(6) If any person—

(a) commences to erect in contravention of subsection (1) of this section a stand capable of affording seating or standing accommodation for twenty or more persons at any one time ; or

(b) erects such a stand otherwise than in accordance with a plan section and particulars submitted to the Corporation under the said subsection (1) or if notice has

been given of any modifications under subsection (2) of this section otherwise than in accordance with the said plan section and particulars as modified by the notice ; or

(c) being the owner or occupier of such a stand erected otherwise than as aforesaid allows twenty or more persons to be on the stand at any one time ; or

(d) being the owner or occupier of such a stand fails to comply with any requirement imposed by a notice under subsection (2) or subsection (3) of this section ;

he shall be liable to a penalty not exceeding fifty pounds and in the case of any such failure to a daily penalty not exceeding forty shillings :

Provided that nothing in this subsection shall apply to a stand the erection whereof was commenced before the appointed day.

(7) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this section shall be provisions which it is the duty of the Corporation to enforce.

(8) The provisions of this section shall not apply to any stand erected by the proprietor of a travelling circus roundabout or amusement fair for the purposes of his business as such.

(9) In this section the expression " stand " includes a structure but does not include a building or extension of a building to which building byelaws are applicable.

120.—(1) The Corporation may make byelaws—

- (a) for regulating the hours during which pleasure fairs and roller-skating rinks may be open to the public ;
- (b) for securing safe and adequate means of ingress to and egress from any pleasure fair or roller-skating rink ;
- (c) for the prevention and suppression of nuisances and preserving sanitary conditions cleanliness order and public safety at any pleasure fair or roller-skating rink.

Byelaws as to
pleasure fairs
and roller-
skating rinks.

(2) In this section—

(a) the expression " pleasure fair " means any place—

(i) which is for the time being used wholly or mainly for providing (whether or not in combination with any other entertainment) any entertainment to which this section applies ; and

(ii) for admission to which or for the use of the contrivances in which a charge is made ;

(b) the expression " roller-skating rink " means any place which is for the time being used wholly or mainly for roller skating and for admission to which a charge is made.

PART IX
—cont.

(3) Subject to the provisions of the next following subsection the entertainments to which this section applies are the following:—

- (a) circuses ;
- (b) exhibitions of human beings or of performing animals ;
- (c) merry-go-rounds roundabouts swings switchback railways ;
- (d) cocoanut shies hoop-las shooting galleries ;
- (e) dodgems or other mechanical riding or driving contrivances ;
- (f) automatic or other machines intended for entertainment or amusement ;
- (g) anything similar to any of the foregoing.

(4) Nothing in this section or the byelaws made thereunder shall apply to—

- (a) any fair held by statute royal charter royal licence letters patent or ancient custom ; or
- (b) any entertainment which is not run for profit and is not carried on for more than seven consecutive days ; or
- (c) any entertainment the profits whereof are devoted to a religious or charitable purpose ; or
- (d) any entertainment which is by virtue of the Cinematograph Act 1909 prohibited from being given elsewhere than in premises licensed for the purpose in accordance with the provisions of that Act.

(5) The Corporation shall—

- (a) not less than one month before making byelaws under this section furnish the Amusement Caterers' Association the Association of Amusement Park Proprietors of Great Britain and the Showmen's Guild of Great Britain with a draft of the proposed byelaws ; and
- (b) on submitting the byelaws to the Secretary of State for confirmation furnish him with a copy of any representations made to the Corporation in writing by any of the said bodies and a statement showing the effect if any given to any such representation.

(6) Different byelaws may be made under this section for pleasure fairs and roller-skating rinks and for different kinds of pleasure fairs.

PART X

FINANCE RATING SUPERANNUATION ETC.

121.—(1) Subject to the provisions of this Act the Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums requisite for those purposes and they shall repay any sum so borrowed within such periods as the Corporation may determine not exceeding those respectively mentioned in the second column of the said table (namely):—

1	2
Purpose	Period for repayment
(a) The purpose of making any payment to any authority under Part II of this Act or under any enactment the provisions of which are applied thereby.	Forty-five years from the date or dates of borrowing.
(b) The payment of the costs charges and expenses of this Act.	Five years from the passing of this Act.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed by this section for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purposes of the said Part IX.

122. It shall not be lawful to exercise the powers of borrowing conferred by this Act (except the power of borrowing to pay the costs charges and expenses of this Act) otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945 or of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

123. If any money is payable to a holder of any authorised security being a minor the receipt of his guardian shall be a sufficient discharge to the Corporation.

124.—(1) In addition to any other form of borrowing the Corporation may exercise any statutory borrowing power by issue of bonds to be called “Leamington Corporation bonds” (and in this Act referred to as “bonds”) in accordance with the provisions of this Act.

PART X
—cont.

(2) Where the Corporation raise money by the issue of bonds sections 209 to 214 of the Act of 1933 shall apply as if the money had been raised by borrowing by mortgage under that Act and bonds were mortgages within the meaning of that Act.

(3) The provisions set out in the Third Schedule to this Act shall have effect with regard to bonds.

(4) Bonds shall be deemed to be loan capital or funded debt within the meaning of section 8 of the Finance Act 1899 as amended by section 10 of the Finance Act 1907.

(5) The provisions of section 115 of the Stamp Act 1891 (which relates to the composition for stamp duty) shall with the necessary adaptations apply in the case of bonds as if those bonds were stock or funded debt within the meaning of that section.

Consolidated
loans fund.

125.—(1) Notwithstanding anything contained in any enactment on and after the thirty-first day of March nineteen hundred and fifty-three the Corporation may (if they think fit) establish a fund to be called “the consolidated loans fund” to which shall be paid—

- (a) all moneys borrowed by the Corporation by the issue of authorised securities together with all moneys borrowed without or pending the issue of an authorised security in connection with the exercise of any statutory borrowing power ;
- (b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are to be applied by the Corporation with due authority to another capital purpose ; and
- (c) the appropriate sums provided in each financial year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt :

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys so borrowed or received and of all sums provided by the Corporation as aforesaid before the date on which the consolidated loans fund is established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation—

- (a) in the redemption of authorised securities the purchase of bonds or stock for extinction or the repayment of any moneys borrowed by the Corporation ; and

- (b) in the exercise of any statutory borrowing power by the transfer of the required amount to the appropriate account of the Corporation :

PART X
—cont.

And the moneys of the consolidated loans fund not used or applied in these ways or intended to be so used or applied within a reasonable period shall be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund shall not except with the consent of the Minister be used or applied otherwise than as provided in this section.

(3) There shall also be transferred to the consolidated loans fund such sums as are necessary to meet the interest charges and the financing and other revenue expenses connected with the management of that fund and separate accounts shall be kept of these sums and their application.

(4) The Corporation may pay into the consolidated loans fund any moneys forming part of any reserve depreciation contingency superannuation insurance capital renewal repairs art or other similar fund (hereinafter referred to as " the lending fund ") and not for the time being required for the purposes for which the lending fund was established and such moneys shall be deemed to be moneys borrowed by the Corporation within the meaning of subsection (1) of this section and shall be used accordingly subject to the following conditions :—

(a) the moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the lending fund was established ; and

(b) there shall be paid out of the consolidated loans fund to the general rate fund an amount equal to the interest on any moneys so used and for the time being not repaid to the lending fund at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the average rate of interest payable by the Corporation on their current borrowings and in the accounts of the general rate fund an amount equal to the interest as aforesaid shall (subject to any prescribed limit on the amount of the lending fund) be credited to the lending fund.

(5) Save as in this section expressly provided all the obligations of the Corporation to the holders of authorised securities shall continue in force.

(6) The powers conferred by this section shall not be exercised by the Corporation except in accordance with a scheme to be made by the Corporation and approved by the Minister and such

PART X
—cont.

scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

(7) Any scheme approved by the Minister under this section may from time to time be altered extended amended or revoked by a scheme made and approved in like manner as the original scheme.

Scheme for
equated
periods.

126.—(1) The Corporation may at any time and from time to time make a scheme for prescribing one or more uniform periods within which all or any loans contracted by them under statutory borrowing powers shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may apply to any such loans all or any of the provisions of this Act and the Act of 1933 in regard to the borrowing and repayment of money with or without modification and may make provision in regard to all matters incidental to the objects aforesaid.

(2) Any scheme made by the Corporation under this section shall have no force or effect until confirmed by the Minister who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act.

(3) Nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any stock or bonds existing at that time except with the consent of such mortgagee or holder.

(4) The loans referred to collectively in any scheme under general headings in accordance with a classification approved by the Minister may be consolidated and dealt with in the accounts of the Corporation as if the aggregate amount of the several loans relative to each heading were one loan raised under one statutory borrowing power and if approved by the Minister separate consolidations may be made of all or any of the loans included under such general headings.

(5) Any scheme confirmed under this section may be extended amended or annulled by schemes prepared and confirmed in like manner as the original scheme.

Capital fund.

127.—(1) The Corporation may (if they think fit) establish a fund to be called “the capital fund” to which they may pay—

(a) any sums derived from the sale of any property of the Corporation ;

- (b) the surplus of the revenue income over the revenue expenditure of the general rate fund (not required by law to be applied to or carried forward for any other purpose) on the thirty-first day of March in any year ; and
- (c) such other sums from the revenue of the general rate fund (including a sum equal to the interest earned on the capital fund and any interest arising from the application of that fund to the purposes authorised) as the council may by resolution direct not being moneys directed by law to be applied to any other purpose :

Provided that—

- (i) the aggregate amount paid to the capital fund under paragraphs (b) and (c) of this subsection (in addition to the sum equal to the interest earned on the capital fund and any income arising from the application of the fund to the purposes authorised) shall not except with the consent of and to such extent as may be approved by the Minister exceed in any year the equivalent of twice the product of a penny rate as ascertained or estimated for the purpose of section 9 of the Rating and Valuation Act 1925 ; and
- (ii) payments into the capital fund shall not be made whenever that fund amounts to forty thousand pounds or such greater sum as may from time to time be approved by the Minister.

(2) The Corporation may apply the moneys in the capital fund in defraying any expenditure to which capital is properly applicable or in providing money for repayment of loans (but not in making the annual payment required to be made therefor) :

Provided that the amount to be expended under this subsection shall not exceed the sum of five thousand pounds in any one transaction unless a greater sum shall in any case be allowed by the Minister.

(3) (a) Pending the application of moneys in the capital fund to the purposes authorised by the last preceding subsection the moneys in the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment of the moneys in the capital fund in the manner provided by the foregoing paragraph and any income arising from the application of the capital fund to the purposes authorised shall be carried to and form part of the general rate fund.

(4) All moneys derived from the sale of any land of the Corporation which are applied from the capital fund under the provisions of this section shall and all other moneys which are

PART X
—cont.

applied from the capital fund may if the Corporation think fit be repaid from the account to which such moneys were advanced by such annual instalments with or without interest and within such period as may be determined by the Corporation.

(5) Any sum derived from the sale of any corporate land of the Corporation as defined in section 305 of the Act of 1933 and paid to the capital fund shall not except with the consent of the Minister be applied otherwise than in the purchase or acquisition of other corporate land.

Reserve funds.

128.—(1) The Corporation may (if they think fit) provide a reserve fund in respect of each of the Corporation undertakings by setting aside such an amount as they may from time to time think reasonable and (unless the amounts so set aside are applied in any other manner authorised by any enactment) investing the same in statutory securities until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation in respect of each such undertaking.

(2) Any reserve fund formed under this section shall be applicable—

(a) to answer any deficiency at any time happening in the income of the Corporation from the undertaking in respect of which it is formed ; or

(b) to meet any extraordinary claim or demand at any time arising against the Corporation in respect of that undertaking ; or

(c) for payment of the cost of renewing improving or extending any part of the works forming part thereof or otherwise for the benefit of that undertaking ;

and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(3) Resort may be had to a reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

(4) Any income arising from the investment or use of the moneys in a reserve fund shall be carried to and form part of the general rate fund and (subject to the limitation imposed by subsection (1) of this section) an amount equivalent to such income shall be credited to such reserve fund.

Renewal and
repairs fund.

129.—(1) The Corporation may (if they think fit) establish a fund to be called “the renewal and repairs fund” for the purpose of defraying the expenditure to be incurred from time to time in repairing maintaining and renewing any buildings works

plant tools machinery appliances vehicles boilers and equipment and apparatus in connection therewith office machinery furniture fittings and appliances or things and may from time to time apply the moneys of the fund in defraying such expenditure but this section shall not apply to expenditure in connection with any buildings works plant appliances or things for the purposes of any of the Corporation undertakings in respect of which they have provided a reserve fund or to any building in respect of which they are required by the Acts relating to housing to keep a housing repairs account.

(2) The Corporation may from time to time pay into the renewal and repairs fund such sums as they think fit from the revenue of the general rate fund (including a sum equal to the interest earned on the renewal and repairs fund and any income arising from the application of that fund to the purposes authorised by any enactment) but the maximum amount standing to the credit of the renewal and repairs fund shall not except with the approval of the Minister at any time exceed twenty-five thousand pounds.

(3) (a) Pending the application of moneys in the renewal and repairs fund to the purposes authorised by this section such moneys shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment of the moneys in the renewal and repairs fund in the manner provided by this subsection and any income arising from the application of the fund to the purposes authorised by any enactment shall be carried to and form part of the general rate fund.

130.—(1) The Corporation may (if they think fit) establish a fund to be called “the insurance fund” with a view to providing a sum of money which shall be available for making good all such losses damages costs and expenses as may from time to time be specified in a resolution of the council (in this section referred to as “the specified risks”).

(2) The establishment of an insurance fund under this section shall not prevent the Corporation from insuring in one or more insurance offices against the whole or any part of all or any of the specified risks.

(3) In each year after the establishment of the insurance fund the Corporation shall pay into that fund either—

(a) such a sum as shall in their opinion be not less than the aggregate amount of the premiums which would be payable if the Corporation fully insured in some insurance office of good repute against the specified risks; or

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—cont.

(b) if the Corporation insure in some insurance office against the whole or any part of all or any of the specified risks such sum as will together with the premiums paid for the last-mentioned insurance be not less than the aggregate amount aforesaid.

(4) When the insurance fund shall amount to the prescribed amount as hereinafter defined the Corporation may if they think fit discontinue the yearly payments to the fund but if the fund is at any time reduced below the prescribed amount the Corporation shall recommence and continue the yearly payments to that fund in accordance with subsection (3) of this section until the fund be restored to the prescribed amount.

(5) The Corporation shall provide the yearly payments aforesaid by contributions from the revenue of the general rate fund and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking department or service of the Corporation which if the specified risks were insured against in an insurance office would be properly chargeable with the payment of the premium of such insurance.

(6) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses damages costs and expenses in consequence of the specified risks all moneys for the time being standing to the credit of the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities and the interest and other annual proceeds received by the Corporation in respect of such investments shall be carried to the general rate fund.

(b) In addition to the sum required to be paid into the insurance fund by subsection (3) of this section the Corporation shall in every financial year so long as the fund is less than the prescribed amount carry to the credit of that fund out of the general rate fund an amount equal to the interest and other annual proceeds carried to the general rate fund in pursuance of the last preceding paragraph.

(c) If and so long as the insurance fund amounts to the prescribed amount the interest and other annual proceeds received by the Corporation in respect of or on investments forming part of the insurance fund and carried to the general rate fund may be apportioned in the accounts of the Corporation between the several undertakings departments or services liable to contribute to the insurance fund in such shares or proportions as may be equitable.

(7) (a) The insurance fund shall be applied to meet any losses damages costs or expenses sustained by the Corporation in consequence of the whole or any part of all or any of the specified

risks in the order of the dates on which such losses damages costs or expenses become ascertained and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses damages costs or expenses the Corporation may with the sanction of the Minister borrow at interest under and subject to the provisions of Part IX of the Act of 1933 such sums of money as will be necessary to make up the deficiency.

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums borrowed in pursuance of this subsection and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the general rate fund and charged in the accounts of the Corporation under the separate headings or divisions in respect of such undertakings departments or services of the Corporation and in such proportions as the Corporation may determine having regard to the risks through which such deficiencies arise.

(8) In this section "the prescribed amount" means such sum as may from time to time be prescribed by resolution of the council.

131.—(1) The Corporation may (if they think fit) establish a Art fund, fund to be called "the art fund" to provide for the purchasing of any pictures sculptures or other objects of artistic scientific or historical interest which in their opinion it is desirable at any time to acquire for exhibition in and as additions to the collection in the public library museum and art gallery or other building of the Corporation and such fund shall be formed by paying thereto out of the general rate fund such an amount as the Corporation may from time to time determine not exceeding in any financial year the equivalent of one-fifth of the product of a penny rate as ascertained or estimated for the purpose of section 9 of the Rating and Valuation Act 1925 or such greater fraction (not exceeding one-half) of the product of a penny rate as may be approved by the Minister:

Provided that when the art fund shall amount to the sum of ten thousand pounds the Corporation shall discontinue such annual payments but if the said fund is at any time reduced below the sum of ten thousand pounds the Corporation may recommence and continue the annual payments until the said fund be restored to the sum of ten thousand pounds.

(2) (a) Pending the application of the art fund to the purposes authorised by this section the moneys in the said fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the art fund in manner provided by this subsection

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—*cont.*

shall be carried to and form part of the general rate fund and (subject to the limitation imposed by the proviso to the preceding subsection) an amount equivalent to such income shall be credited to the art fund.

**Recovery of
rates from
persons
removing.**

132. If a justice is satisfied on complaint by any rate collector or other authorised officer of the Corporation that any person is quitting or about to quit any premises and has failed to pay on demand any general rate or any water rate or charge which may be due from him to the Corporation and intends to evade payment of the same the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the person named therein forthwith to enter the premises and to seize sufficient goods and chattels of the person in default to meet the claim and to detain them until the complaint is determined upon the return of the summons.

**Recovery of
rates from
certain owners.**

133.—(1) Where the owner of any hereditament has agreed with the occupier thereof that the owner shall pay the general rate or the water rate charged on such hereditament the owner shall be liable to pay to the Corporation so much of any payment in respect of rent received by him from the occupier as shall represent the proportion of rate included in such payment and so much of such payment may on proof of such agreement be recovered by the Corporation from the owner in the same manner and subject to the same conditions in and subject to which rates are recoverable from occupiers of rated hereditaments.

The remedy of the Corporation under this section shall be in addition and without prejudice to their other remedies for the recovery of rates.

(2) For the purposes of this section the expression “owner” in relation to a hereditament means the person who is entitled to receive the rent payable in respect thereof.

(3) This section shall not apply to any hereditaments in the case of the general rate to which subsection (1) of section 11 of the Rating and Valuation Act 1925 applies by virtue of resolutions of the council.

**Collection and
recovery of
water rates
and charges.**

134.—(1) Any water rent rate or charge payable to the Corporation may be demanded and collected together with the general rate and the same books may be used for the said rent rate or charge and the general rate.

(2) Notwithstanding the provisions of any other enactment any water rent rate or charge recoverable by the Corporation in a court of summary jurisdiction may (without prejudice to any other right or remedy of the Corporation) be recoverable in the same manner and subject to the same provisions in respect of such recovery as the general rate.

(3) There may be included in one and the same complaint information summons or warrant or in any schedule thereto two or more sums payable to the Corporation by any one person in respect of the water rent rate and charge and general rate payable by him.

135.—(1) If on the death of an employee (which expression in this section includes a former employee or pensioner of the Corporation or other person) to whom or to whose personal representative a sum not exceeding one hundred pounds is due from the Corporation on account of salary wages superannuation allowance pension gratuity grant or repayment of contributions to any superannuation fund or of contributions otherwise made in respect of superannuation with or without interest a grant of probate of the will of the employee or of letters of administration to his estate is not produced to the Corporation within such time (not being less than one month after his death) as the Corporation may think reasonable then at the expiration of that time the Corporation may pay such sum to the person or persons entitled to the residuary estate of the employee by virtue of the provisions of paragraphs (i) to (vi) inclusive of subsection (1) of section 46 of the Administration of Estates Act 1925 and section 9 of the Legitimacy Act 1926 to the intent that such sum shall be applied in due course of administration:

Payments due
to deceased
employees.

Provided that—

(a) the Corporation may (notwithstanding the receipt of a notice under proviso (b) of this subsection) if they think fit pay out of such sum the funeral expenses of the deceased employee or so much thereof as the Corporation consider reasonable having regard to any death grant which has been or is to be paid under section 22 of the National Insurance Act 1946;

(b) if the Corporation receive notice in writing of any claim against the estate of the deceased employee at any time before they shall have paid the whole of such sum in accordance with the provisions of this subsection they shall not (except in any case in which the provisions of section 46 (1) (vi) of the Administration of Estates Act 1925 are applicable) pay such sum or the balance thereof in their hands to any person other than the personal representative of the deceased employee unless and until such claim has been satisfied disproved or withdrawn.

(2) Before paying any sum in accordance with the provisions of the preceding subsection (except under proviso (a) thereof)

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—cont.

to any person other than the personal representative of the deceased employee the Corporation shall require either—

- (a) a statutory declaration (or when payment is made to the Crown or to the Duchy of Lancaster or to the Duchy of Cornwall a statement) by the person or one of the persons to whom the Corporation may pay or propose to pay such sum or any part thereof to the effect that the total estate of the deceased employee (including such sum but after deduction of debts and funeral expenses) does not exceed four hundred pounds; or
- (b) the production of a certificate from the Commissioners of Inland Revenue to the effect either that any death duties payable in respect of such sum have been paid or that no such duties are payable.

(3) The Corporation shall be discharged from all liability in respect of any payment or application of money effected by them in exercising their powers under this section.

Payment of
pension etc.
of person of
unsound mind.

136.—(1) Subject to the provisions of this section where a person entitled to receive from the Corporation any sum to which this section applies is lawfully detained as a person of unsound mind in accordance with the Lunacy Act 1890 the Corporation may pay the whole of that sum or so much thereof as they think fit to the person having the care of the person so detained as aforesaid and may pay or apply the whole or so much as they think fit of the surplus (if any) thereof to or for the maintenance or benefit of the wife or husband or relations of the person so detained as aforesaid.

(2) Subject to the provisions of this section where a person entitled to receive from the Corporation any sum to which this section applies is in the opinion of the Corporation through mental infirmity incapable of managing his affairs the Corporation may pay or apply the whole or so much as they think fit of that sum to or for the maintenance or benefit of such person or of the wife or husband or relations of such person.

(3) This section applies to any sum payable by the Corporation to an employee or former employee or pensioner of the Corporation or the widow or a child of a deceased employee or pensioner by way of salary wages pension superannuation or other allowance gratuity or annuity or by way of repayment with or without interest of contributions made to any superannuation or other fund but the amount to be paid in pursuance of this section to or in respect of any such employee former employee or pensioner shall not exceed one hundred pounds in any year.

(4) Not less than fourteen days before exercising their power under this section for the first time in relation to any person the

Corporation shall give to the Master in Lunacy notice of their intention in that behalf specifying the name and address of that person and the amount and nature of the sums in respect of which the Corporation intend to exercise the said power and in relation to any person to whom subsection (2) of this section applies the Corporation shall at the same time give notice to that person in a form approved by the Master in Lunacy:

Provided that the Corporation may with the approval of the Master in Lunacy exercise the powers of this section in respect of any person notwithstanding that the said period of fourteen days has not expired.

(5) If at any time the Master in Lunacy gives to the Corporation notice in writing that he objects to the exercise by the Corporation of the said power in relation to any person the said power shall as from the date of the receipt by the Corporation of the notice cease to be exercisable by the Corporation in relation to that person unless and until the master withdraws the notice.

(6) The Corporation shall be discharged from all liability in respect of any payment or application of money effected by them in exercise of the said power.

137.—(1) The Corporation may if they think fit grant by way of either of a lump sum or of periodical payments to the widow or dependants of any employee who may die in their service a gratuity not exceeding in the aggregate an amount equal to twice the amount of the annual emoluments of the employment: Power to grant allowances or gratuities in certain cases.

Provided that this section shall not apply—

(a) in the case of a widow to whom a pension is granted in pursuance of section 9 of the Local Government Superannuation Act 1937; or

(b) in the case of a widow or dependant entitled in consequence of the death of such employee to compensation under the Workmen's Compensation Acts 1925 to 1943 or to death benefit under the National Insurance (Industrial Injuries) Act 1946.

(2) Every such allowance or gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such employee would have been charged or been paid if he had continued in his employment.

138. The Corporation may pay—

(a) reasonable expenses of the Corporation in providing public entertainments on the occasion of or otherwise in connection with public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the borough; Expenses of public ceremonies etc.

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—cont.

- (b) reasonable expenses in connection with official and courtesy visits by or on behalf of the Corporation and payments for travelling expenses and for expenses reasonably incurred by or on behalf of any member or officer of the Corporation in connection therewith; and
- (c) reasonable expenses in connection with the presentation of the freedom of the borough to persons whom the council may resolve to admit as honorary freemen.

PART XI

MISCELLANEOUS

Registration
of hawkers of
food and their
premises.

139.—(1) As from the appointed day the following provisions shall have effect in the borough:—

- (a) No person shall sell or offer or expose for sale any food from or upon a vehicle or from or upon a basket pail tray table or other portable receptacle or stand unless he is registered by the Corporation;
- (b) No premises shall be used as storage accommodation for food intended for sale from or upon a vehicle or from or upon a basket pail tray table or other portable receptacle or stand unless the premises are registered by the Corporation:

Provided that nothing in this subsection shall apply—

- (i) to the sale or offer or exposure for sale of food by a person keeping open shop for the sale of food or by a person employed and in the course of his employment by such a person or to the use by a person so keeping open shop or by a person employed and in the course of his employment by such a person of any premises as storage accommodation for food intended for sale by him or his employer as the case may be;
- (ii) to the sale or offer or exposure for sale of food by a dairyman registered under regulations for the time being in force under Part I of the Food and Drugs (Milk Dairies and Artificial Cream) Act 1950 or having effect by virtue of subsection (2) of section 36 of that Act as if they had been made under the said Part I or by a person employed and in the course of his employment by such a dairyman or to the use by any person as storage accommodation for food of a dairy so registered;
- (iii) to the use by any person as storage accommodation for food of premises registered under section 14 of the Food and Drugs Act 1938;

(iv) to the sale or offer or exposure for sale of food by any person on premises owned or occupied by him or his employer or to the use by any person of any premises owned or occupied by him or his employer as storage accommodation for food intended for sale by him or his employer on those or any other such premises ;

(v) to the sale or offer or exposure for sale of food by any person or to the use of any premises as storage accommodation for food intended for sale if the profits of the sale are devoted to a religious or charitable purpose.

(2) If any person contravenes the provisions of the foregoing subsection he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(3) An application for a person to be registered under this section shall be made by himself and an application for premises to be so registered shall be made by the occupier or intending occupier thereof.

(4) If it appears to the Corporation—

(a) that the public health is or is likely to be endangered by any act or default of a person who has applied to be or is registered under this section being an act or default in relation to the quality storage or distribution of food ; or

(b) that any premises in respect of which an application has been made for registration under this section or which are registered under this section do not satisfy the requirements of subsection (1) of section 13 of the Food and Drugs Act 1938 or are otherwise unsuitable for use as storage accommodation for food intended for sale as aforesaid ;

the Corporation shall serve on that person or on the person applying for the registration of the premises or in the case of premises which are registered the occupier of the premises a notice—

(i) stating the place and time (not being less than seven days after the date of the service of the notice) at which it is proposed that a committee of the council shall take the matter into consideration ; and

(ii) informing him that he may attend before the said committee with any witnesses whom he desires to call at the place and time mentioned to show cause why the Corporation should not for reasons specified in the notice refuse to register him or the premises or revoke his or their registration (as the case may be).

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—cont.

(5) If a person on whom a notice is served under the last preceding subsection fails to show cause to the satisfaction of the said committee the Corporation may refuse to register him or the premises or revoke his or their registration (as the case may be) and shall forthwith give notice to him of their decision in the matter and shall if so required by him within fourteen days of their decision give to him within forty-eight hours a statement of the grounds on which it was based.

(6) Any person aggrieved by a decision of the Corporation under the last preceding subsection may appeal to a court of summary jurisdiction.

(7) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this section shall be provisions which it is the duty of the Corporation to enforce.

(8) In this section the expression "food" does not include any substance contained in containers of such materials and so closed as to exclude all risk of contamination.

Hairdressers
and barbers.

140.—(1) As from the appointed day no person shall carry on the business of a hairdresser or barber on any premises in the borough unless he and those premises are registered by the Corporation.

(2) Subject to the provisions of this section any person who makes an application in that behalf and furnishes the Corporation with particulars of his name and residence and of the premises in respect of which he desires to be registered shall be registered in respect of those premises by the Corporation in a book kept for the purpose and on so registering any person the Corporation shall issue to him a certificate of registration.

(3) The Corporation may make byelaws for the purpose of securing—

(a) the cleanliness of premises registered under this section and of the instruments towels materials and equipment used therein ; and

(b) the cleanliness of persons employed in such premises in regard to both themselves and their clothing.

(4) If any person carries on business in contravention of subsection (1) of this section or contravenes any byelaw made under subsection (3) of this section he shall be liable—

(a) in the case of a contravention of subsection (1) to a penalty not exceeding twenty pounds and a daily penalty not exceeding five pounds ; and

(b) in the case of a contravention of a byelaw to a penalty not exceeding five pounds ;

and in either case the court by which he is convicted may (in lieu of or in addition to imposing a penalty) order the suspension or the cancellation of his registration.

(5) Where the registration of any person is cancelled by order of a court under the last preceding subsection—

(a) he shall within seven days deliver up to the Corporation his certificate of registration and if he fails to do so he shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding ten shillings ; and

(b) he shall not again be registered by the Corporation under this section except in pursuance of a further order of a court of summary jurisdiction made on his application.

(6) A person registered under this section shall keep a copy of the said byelaws and of his certificate of registration displayed in the premises in respect of which he is registered and if he fails to do so he shall be liable to a penalty not exceeding twenty shillings and a daily penalty not exceeding ten shillings.

(7) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this section shall be provisions which it is the duty of the Corporation to enforce.

141. The Corporation may expend on the provision of prizes in connection with any competition they may hold relating to their tenants' gardens such sum as they may think fit not exceeding in any one year the sum of two hundred pounds. Prizes for garden competitions.

142. The Corporation may let on hire plants flowers and other floral decorations and may make such charges therefor as they may think fit. As to hire of floral decorations.

143. Any compensation recoverable by the Corporation for damage caused by negligence to any lamp or lamp-post belonging to them or any apparatus or equipment provided by them in any street or public place shall if the amount thereof does not exceed twenty pounds be recoverable summarily as a civil debt. Summary recovery of damages for negligence.

144.—(1) Any power conferred on an officer of the Corporation by any enactment or byelaw to enter upon and inspect any building or works in course of construction shall include a power to use free of expense for the purpose of the entry or inspection any ladders scaffolding and plant in or about the building or works. Powers to use ladders etc. for entry or inspection.

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—cont.

(2) If the builder of or contractor for any such building or works or any person employed by him in or about the building or works—

(a) refuses to give to such an officer all reasonable assistance in the exercise of the powers conferred by this section ;
or

(b) otherwise obstructs such an officer in the exercise of those powers ;

he shall be liable to a penalty not exceeding five pounds.

Cleansing of
rivers and
streams.

145.—(1) If any river or stream or any part thereof within the borough is or becomes in such a state that the proper flow of water along the same is obstructed or impeded the Corporation may by notice require the owner or occupier of any lands abutting on any part of such river or stream which is in such a state as aforesaid or any person by whose act or default the proper flow of water in such river or stream is obstructed or impeded to cleanse or put in proper order such river or stream or part thereof so as to allow the proper flow of water in such river or stream :

Provided that the Corporation shall not enforce a notice given under this section unless the owner or occupier has obtained any consent of the Severn River Board which he is required to obtain under subsection (1) of section 4 of the Rivers (Prevention of Pollution) Act 1951.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

(3) Nothing in this section shall authorise the Corporation to execute or require the commission to execute any works in through or under or so as to affect any lands or works belonging to the commission and used by them for the purposes of their railways canals or inland navigations without the consent of the commission but such consent shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be determined by arbitration.

Entry for
purposes
of last
preceding
section.

146.—(1) Any authorised officer of the Corporation shall on producing if so required some duly authenticated document showing his authority have a right to enter any premises at all reasonable hours for the purpose of—

(a) inspecting any river or stream ;

(b) ascertaining whether or not circumstances exist which would authorise or require the Corporation to take any

action or execute any work under the last preceding section ;

- (c) taking any action or executing any work authorised or required by the last preceding section to be taken or executed by the Corporation :

Provided that admission to any premises shall not be demanded as of right unless twenty-four hours' notice of the intended entry has been given to the occupier.

(2) The provisions of subsections (2) to (4) of section 287 of the Act of 1936 shall have effect as if they were re-enacted in this section and in terms made applicable thereto.

(3) The provisions of this section shall not authorise any officer of the Corporation to enter any lands or works belonging to the commission and used by them for the purposes of their railways canals or inland navigations without the consent of the commission but such consent shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be determined by arbitration.

(4) If any person who in compliance with the provisions of this section is admitted into a factory workshop or workplace discloses to any person any information obtained by him in the factory workshop or workplace with regard to any manufacturing process or trade secret he shall unless such disclosure was made in the performance of his duty be liable to a penalty not exceeding one hundred pounds or to imprisonment for a term not exceeding three months.

147.—(1) If it appears to the Corporation that any tree within the borough is in such a condition as to be dangerous to persons or buildings in or on premises adjoining the premises on which such tree is growing the Corporation may serve a notice on the owner of the tree or on the occupier of the premises on which such tree is growing requiring him to remove top lop or prune the tree within twenty-one days so as to prevent such danger. Dangerous trees.

(2) Any person aggrieved by a requirement imposed by a notice under the preceding subsection may appeal to a court of summary jurisdiction.

(3) If any person fails to comply with a notice served on him under this section the Corporation may themselves carry out the requirement of their notice and recover from that person the expenses reasonably incurred by them in so doing.

148.—(1) If any person for the purpose of obtaining for him- False self or any other person the occupation of any house belonging statements to to the Corporation or a rebate in the rent of any house belonging obtain rent rebate etc.

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—cont.

to the Corporation or a reduction in the amount of any other payment due to the Corporation—

- (a) knowingly makes to the Corporation or any of their employees a false statement or false representation relating to his or that other person's need for accommodation or ability to pay the rent or make the payment ; or
- (b) produces or furnishes or knowingly allows to be produced or furnished to the Corporation or any of their employees any document or information relating as aforesaid which he knows to be false in a material particular ;

he shall be liable to a penalty not exceeding fifty pounds or to imprisonment for a term not exceeding four months or to both such penalty and imprisonment.

(2) If any person is convicted of an offence under this section the court may order him to pay to the Corporation the amount of the rebate or reduction so obtained or (as the case may be) may terminate the tenancy of the house.

Provision of
weighing
machines.

149. The Corporation may in any premises belonging to or occupied by them provide and maintain weighing machines for ascertaining the weight of persons and may charge for the use thereof.

PART XII

GENERAL

Confirming
authority
for byelaws.

150. As respects byelaws made under this Act the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Minister except that in the case of byelaws made under the sections mentioned in the first column of the following table the confirming authority shall be the authority respectively mentioned in the second column of that table:—

1	2
Section 113 (Aerodrome undertaking)...	Minister of Civil Aviation.
Section 120 (Byelaws as to pleasure fairs and roller-skating rinks) ...	Secretary of State.

The appointed
day.

151.—(1) For the purposes of this Act (except Part I (Preliminary) and Part II (Extension of borough) thereof) the expression “the appointed day” means such day as may be fixed by resolution of the council subject to and in accordance with the provisions of this section.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

(3) The Corporation shall cause to be published in a local newspaper circulating in the borough notice—

(a) of the passing of any such resolution and of the date fixed thereby ; and

(b) of the general effect of the provisions of this Act coming into operation as from that date ;

and the date so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(4) Either—

(a) a copy of any such newspaper containing any such notice ; or

(b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page of any such newspaper bearing the date of its publication and containing any such notice ;

shall be evidence of the publication of the notice and of the date of the publication.

(5) Where any provision of this Act coming into operation on a day fixed by resolution under this section requires the registration of a person carrying on any business or of premises used for any purpose it shall be lawful for any person who—

(a) immediately before that day was carrying on that business or using any premises for that purpose ; and

(b) had before that day duly applied for registration required by that provision ;

to continue to carry on that business and to use those premises for that purpose until he is informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (2) of section 153 (Appeals) of this Act.

152. Proceedings in respect of an offence created by or under this Act shall not without the written consent of the Attorney-General be taken by any person other than a party aggrieved or the Corporation. Restriction on right to prosecute.

153.—(1) Section 300 of the Act of 1936 shall apply with respect to appeals to a court of summary jurisdiction under any enactment in this Act as it applies with respect to such appeals under any enactment in that Act and sections 301 and 302 of that Act shall apply accordingly.

PART XII
—cont.

(2) Where any requirement refusal or other decision of the Corporation against which a right of appeal is conferred by this Act—

(a) involves the execution of any work or the taking of any action ; or

(b) makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of the requirement refusal or decision or to use any premises for any purpose for which they were lawfully used up to that time ;

then until the time for appealing has expired or when an appeal is lodged until the appeal is disposed of or withdrawn or fails for want of prosecution—

(i) no proceedings shall be taken in respect of any failure to execute the work or take the action nor shall the Corporation themselves execute the work or take the action ; and

(ii) that person may carry on that business and use those premises for that purpose.

Apportionment
of expenses in
case of joint
owners.

154. Where under the provisions of this Act or any local Act for the time being in force in the borough the Corporation shall execute any works of common benefit to two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the Corporation or in case of dispute by a court of summary jurisdiction.

Power to
charge in
respect of
establishment
expenses.

155. Whenever under any public general Act from time to time in force in the borough (other than the Act of 1936) or under any local enactment the Corporation on the application or in consequence of the default of the owner or occupier of any premises execute any work the cost of which is payable by such owner or occupier the Corporation may include in and recover as part of such cost such additional sum not exceeding five per centum of the cost of the works as they think fit in respect of their establishment charges.

Breach of
conditions of
consent of
Corporation.

156. Where in pursuance of any enactment the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of such terms or conditions shall as regards liability to a penalty and other consequences be deemed equivalent to the execution of the works or the doing of the act or thing without the required consent.

157. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

PART XII
—cont.

Damages and charges to be settled by court.

158. Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration other than questions or disputes to which the provisions of the Lands Clauses Acts apply then unless other provision is made the reference shall be to a single arbitrator to be agreed upon between the parties to the question or dispute or in default of such agreement appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1950 shall apply to any such arbitration.

Application of Arbitration Act.

159. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Act of 1936.

Determination of compensation.

160. The Minister the Minister of Transport the Minister of Fuel and Power and the Minister of Civil Aviation may hold such inquiries as they respectively may consider necessary in regard to the exercise of any powers conferred upon them or the giving of consents under this Act and section 290 of the Act of 1933 shall apply accordingly.

Inquiries by Ministers.

161.—(1) The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

Application of provisions of Act of 1936.

Section 271 (Interpretation of “provide”);

Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers);

Section 276 (Power of local authority to sell certain materials);

Section 277 (Power of councils to require information as to ownership of premises);

Section 283 (Notices to be in writing; forms of notices &c.);

Section 284 (Authentication of documents);

Section 285 (Service of notices &c.);

Section 286 (Proof of resolutions &c.);

Section 287 (Power to enter premises);

PART XII
—cont.

- Section 288 (Penalty for obstructing execution of Act) ;
- Section 289 (Power to require occupier to permit works to be executed by owner) ;
- Section 291 (Certain expenses recoverable from owners to be a charge on the premises: power to order payment by instalments) ;
- Section 293 (Recovery of expenses &c.) ;
- Section 294 (Limitation of liability of certain owners) ;
- Section 295 (Power of local authority to grant charging orders) ;
- Section 296 (Summary proceedings for offences) ;
- Section 297 (Continuing offences and penalties) ;
- Section 299 (Inclusion of several sums in one complaint &c.) ;
- Section 304 (Judges and justices not to be disqualified by liability to rates) ;
- Section 328 (Powers of Act to be cumulative) ;
- Section 329 (Saving for certain provisions of the Land Charges Act 1925) :

Provided that—

(a) the said sections 277 287 289 291 294 295 and 329 shall only apply to the provisions contained in Part IV (Streets) Part V (Sanitation and buildings) Part VI (Nuisances) and Part VII (Infectious diseases) of this Act and in section 119 (Safety of stands) section 139 (Registration of hawkers of food and their premises) section 140 (Hairdressers and barbers) and section 147 (Dangerous trees) of this Act ;

(b) the said section 293 shall not apply to the charges referred to in section 142 (As to hire of floral decorations) of this Act.

(2) The following sections of the Act of 1936 shall extend and apply in relation to any local Act for the time being in force in the borough as if such sections were re-enacted in that local Act and in terms made applicable thereto (that is to say):—

Section 283 (Notices to be in writing ; forms of notices &c.) ;

Section 285 (Service of notices &c.).

Repeal of
obsolete
enactments.

162. The enactments specified in the Fourth Schedule to this Act which have been superseded or which have ceased to have effective operation are hereby repealed.

163. For the protection of the gas board and the electricity board (each of whom is in this section referred to as "the board") the following provisions shall unless otherwise agreed in writing between the Corporation and the board apply and have effect:—

PART XII
—cont.

For protection
of gas and
electricity
boards.

(1) In this section—

"apparatus" means—

(a) in relation to the gas board mains pipes and other works and apparatus belonging to that board and includes any structure constructed for lodging apparatus therein; and

(b) in relation to the electricity board electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to that board and includes any structure constructed for lodging apparatus therein;

"in" in a context referring to apparatus includes under over across along or upon; and

"position" includes depth:

(2) Whenever the Corporation in the exercise of the powers of section 55 (Adjustment of boundaries of streets) of this Act shall give up land forming part of a street in exchange for other land there being in such first-mentioned land any apparatus the Corporation shall give notice to the board of such exchange with a plan showing the position and dimensions of the portion of the street so exchanged and the board—

(a) shall notwithstanding any agreement entered into under the said section continue to have the same powers and rights in respect of any apparatus remaining in the land previously forming the site of the street as if such land had continued to be part of the street but nothing in Part I of the Public Utilities Street Works Act 1950 shall by reason only of this subsection have effect in relation to those powers or rights; or

(b) if it is reasonably necessary may and if reasonably so required by the Corporation shall alter the position of such apparatus to such other position as may be reasonable:

(3) Before the Corporation make any requirements approve any work or propose alternative work or impose any conditions pursuant to section 61 (Crossings over footways) of this Act they shall give at least seven days' notice to the board of their intention so to do:

PART XII
—cont.

- (4) The Corporation shall repay to the board the reasonable expenses incurred by the board of or in connection with—

(a) the alteration of the position of any apparatus under subsection (2) of this section ; and

(b) the reasonable costs of and incidental to—

(i) the cutting off of any apparatus from any other apparatus ; and

(ii) any other work or thing rendered reasonably necessary in consequence of any such operations as are referred to in this subsection :

Provided that subsections (3) and (4) of section 23 of the Public Utilities Street Works Act 1950 which imposes limitations on undertakers' rights to payments shall so far as applicable extend and apply to any payment to be made by the Corporation under paragraph (a) of this subsection as if the works therein mentioned were such undertakers' works as are referred to in the said subsection (3) and as if in the said subsection (3) the words "and the placing of apparatus of that type dimensions or capacity or the placing of apparatus at that depth as the case may be had not been specified as so necessary in a specification of the works settled under Part I of the Fourth Schedule to this Act or agreed so to be by the promoting authority" were omitted :

- (5) For the purposes of section 48 (Prohibition of building until street defined) of this Act land shall not be deemed to be occupied in connection with a building by reason only of the existence of apparatus in such land :

- (6) Nothing in section 49 (Prohibition of building until street formed and sewered) of this Act shall prevent—

(a) the gas board from beginning to erect or proceeding with the erection of a pressure governor house for the purposes of their undertaking ; or

(b) the electricity board from beginning to instal or proceeding with the installation of apparatus for the purposes of their undertaking ;

abutting on any new street before such new street is constructed or sewered in accordance with street bye-laws :

- (7) The Corporation shall so exercise the powers of the following sections of this Act (namely)—

Section 53 (Trees grass verges and gardens) ;

Section 57 (Shelters etc. for passengers on public service vehicles) ;

Section 70 (Decorations in streets) ;

Section 118 (Barriers in streets) ;

PART XII
—cont.

as not to cause damage to or (so far as reasonably practicable) to render less convenient the access to any apparatus and shall not under the powers of the said section 53 make any attachment to any post or standard of the board without their consent :

- (8) Before the Corporation give any consent pursuant to section 69 (Pavement lights and ventilators) of this Act they shall give at least seven days' notice to the board of their intention to do so and any such consent shall contain conditions providing that the owner or occupier of premises to whom the consent is given shall comply with the reasonable requirements of the board for the protection of their apparatus :

- (9) Nothing in the following sections of this Act (namely) :—

Section 82 (Power to repair drains and private sewers) ;

Section 145 (Cleansing of rivers and streams) ;

Section 146 (Entry for purposes of last preceding section) ;

shall authorise the Corporation to execute any works in or under any operational lands within the meaning of the Act of 1947 of the gas board without the consent of the gas board but such consent shall not be unreasonably withheld and any question whether such consent is unreasonably withheld shall be determined by arbitration :

- (10) Nothing in the following sections of this Act (namely) :—

Section 99 (Tipping of spoil and refuse) ;

Section 101 (Discharge of steam and waste gas) ;

shall extend to the tipping by the gas board of spoil or refuse or the use of any spoil or refuse tip or the necessary discharge of steam or gas on any lands used in connection with the manufacture of gas :

- (11) Before any authorised officer of the Corporation in exercise of the powers of section 102 (Silencers for internal combustion engines) of this Act enters any premises occupied or used by—

(a) the gas board in connection with the manufacture storage or supply of gas ; or

PART XII
—cont.

(b) the electricity board in connection with the supply of electricity ;

he shall give reasonable notice of his intended entry into such premises and shall observe any precautions reasonably required by the board in the interests of safety and for preventing interference with the supply of gas or electricity (as the case may be) :

(12) (a) Any difference which may arise between the Corporation and the board under this section shall be referred to arbitration ;

(b) In settling any difference under this section the arbitrator may if he thinks fit require the Corporation to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the apparatus is used.

Saving for
town and
country
planning.

164. This Act shall be deemed to be an enactment passed before and in force at the passing of the Act of 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Costs of Act.

165. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation.

SCHEDULES

THE FIRST SCHEDULE

PART I

LOCAL ACTS

Session and chapter	Title or short title
6 Geo. 4. c. cxxxiii.	An Act for paving or flagging lighting cleansing watching regulating and improving the town of Leamington Priors in the county of Warwick.
6 & 7 Vict. c. lix.	An Act for amending and enlarging the powers and provisions of an Act for paving or flagging lighting cleansing watching regulating and improving the town of Leamington Priors in the county of Warwick and for establishing a market therein.
31 & 32 Vict. c. xxvii.	The Leamington Priors Local Board (Extension of Powers) Act 1868.
49 & 50 Vict. c. xxvii.	The Leamington Corporation Act 1886.
59 & 60 Vict. c. cxiii.	The Leamington Corporation Act 1896.
2 Edw. 7. c. cxxix.	The Leamington Corporation Act 1902.

PART II

ORDERS

Session and chapter or Statutory Instrument	Short title of Confirmation Act	Order
15 & 16 Vict. c. lxix.	The Public Health Supplemental Act 1852. (No. 2.)	The Order relating to Leamington.
53 & 54 Vict. c. ccxxxvii.	The Local Government Board's Provisional Orders Confirmation (No. 11) Act 1890.	The Borough of Leamington Order 1890.
1948 No. 2855.	—	The Leamington Water Order 1948.
1950 No. 1595.	—	The Leamington Water Order 1950.

THE SECOND SCHEDULE

APPORTIONMENT AND RECOVERY OF EXPENSES OF CONSTRUCTING
SEWERS

1. The sum apportionable shall not exceed the sum certified by the surveyor to be at the relevant date the average cost per lineal yard of providing a public sewer having an internal diameter of nine inches in a private street in the borough multiplied by the extent in lineal yards (as so certified) of the sewer or length of sewer in question.

2. The expenses incurred by the Corporation not exceeding the sum so apportionable shall be apportioned by the Corporation on the premises fronting adjoining or abutting on the street or part of the street in question according to the frontages of the respective premises as existing at the relevant date:

Provided that no sum shall be apportioned on any premises in contravention of any agreement between the Corporation and the owner of the premises and any sum which but for this proviso would have been apportioned on any premises shall be deducted from the aggregate sum to be apportioned under this paragraph.

3. As soon as the apportionment has been made the Corporation shall serve on the owners of the several premises affected notice of the sums respectively apportioned to them and the notice shall state the right of appeal conferred by the next following paragraph.

4. Any person aggrieved by an apportionment under this schedule may appeal to a court of summary jurisdiction and may on the appeal dispute the correctness of the surveyor's certificate as well as any other matter affecting the validity or correctness of the apportionment.

5. If the court finds on any such appeal that the aggregate sum apportioned is excessive or that the apportionment thereof is erroneous the court—

- (a) shall order the Corporation to revise not only the sum apportioned to the appellant but also the sums apportioned to the owners of the other premises affected and to submit the revised apportionment to the court for approval; and
- (b) may if satisfied that the owners of all premises affected have had due notice of the proceedings and an opportunity of being heard approve any such revised apportionment either without amendment or with such amendments as they think just.

6. Whenever a new building requiring foul water drainage is erected after the relevant date on any premises on which a sum has been or is thereafter apportioned under this schedule that sum shall be recoverable by the Corporation subject to and in accordance with the following provisions:—

- (a) The said sum shall be recoverable to an extent proportionate to the frontage on the street or part of the street of the site of the new building and the land occupied therewith:

Provided that where a sum has become payable under sub-paragraph (c) of this paragraph in respect of the frontage of the site of a new building and land occupied therewith no further sum shall be recoverable in respect of the same length of frontage or any part thereof by reason of the erection of another new building on that site or that land ;

(b) At any time after whichever of the following events last occurs (that is to say):—

(i) the erection of the new building ; or

(ii) the expiration of the time for appealing against the apportionment or if an appeal is brought within that time the final determination of the appeal ;
the Corporation may serve on the owner for the time being of the new building a demand for payment of the amount recoverable together with interest thereon from the date of the demand :

Provided that where the drains of the new building are at the time of its erection made to communicate with a sewer other than the sewer the expenses of the construction of which are apportioned no such demand shall be served in respect of the building unless and until the drains thereof are made to communicate with the last-mentioned sewer ;

(c) As from the date of the service of the said demand the amount recoverable together with interest thereon from that date until payment thereof shall be payable by the owner on whom the demand is served and shall be charged on the new building and the land occupied therewith and on all estates and interests therein ;

(d) The rate of interest chargeable under this paragraph shall be such rate as the Corporation may determine not exceeding the maximum rate fixed by the Minister for the purpose of section 291 of the Act of 1936 at the time when the said demand is served or if different maximum rates are then so fixed the highest of those rates.

7.—(1) If any person from whom any sum becomes recoverable under the last preceding paragraph proves that by reason of the length of frontage of the land occupied with the building in respect of which the sum is so recoverable the amount of that sum is disproportionate to the benefit accruing to the premises the Corporation may remit such part of that sum as they may think just but in that event if another new building is subsequently erected on the said land the said paragraph shall apply to that other building as if the first-mentioned building had not been erected :

Provided that the amount recoverable in respect of that other building shall not exceed the amount remitted.

(2) Any person aggrieved by a decision of the Corporation with respect to any such remission may appeal to a court of summary jurisdiction.

2ND SCH.
—cont.

8.—(1) The sum apportioned on any premises under this schedule shall for the purposes of section 15 of the Land Charges Act 1925 be deemed to be a charge on the premises notwithstanding that it is not immediately recoverable.

(2) Where the whole or part of the sum so deemed to be a charge (hereafter in this sub-paragraph referred to as “the provisional charge”) becomes actually charged on the whole or part of the premises under the foregoing provisions of this schedule—

(a) within fourteen days the registration of the provisional charge under the said section 15 shall be cancelled and the actual charge shall be registered under that section as from the date on which the provisional charge was registered;

(b) where a part only of the said sum has become actually charged on a part of the premises the remainder of that sum shall be deemed to be a charge on the remainder of the premises notwithstanding that it is not immediately recoverable and shall be registered accordingly within the said fourteen days under the said section as from the said date and the foregoing provisions of this sub-paragraph shall apply thereto accordingly.

9. For the purposes of this schedule—

(a) a building shall be deemed to be a new building erected after the relevant date unless its erection was completed before that date;

(b) the following alterations and extensions shall be deemed to be the erection of a new building (that is to say):—

(i) the re-erection wholly or partially of any building of which an outer wall is pulled down (otherwise than in consequence of fire or other accident) either completely or to such an extent that the part of that wall remaining is less than half the previous height of the building (the height being measured from ground level to the highest point of the building);

(ii) the conversion into a house of any building not originally constructed for human habitation;

(iii) the conversion of any premises into a factory shop or place of public resort;

(iv) any extension by reason whereof the area occupied by the site of the building will (with any previous extension made since the relevant date) be increased by an area of more than one-eighth or in the case of a building constructed for agricultural purposes one-quarter of that occupied by the site of the building before that date;

(c) the expression “the relevant date” means—

(i) in relation to an apportionment under section 75 (Recovery of expenses of sewerage public highway) of this

Act in pursuance of a resolution of the council the date when the resolution became operative ; and

2ND SCH.
—cont.

(ii) in relation to an apportionment under section 76 (Recovery of expenses of sewerage prospective street) of this Act in respect of land becoming a street the date on which the street was laid out.

THE THIRD SCHEDULE

PROVISIONS AS TO CORPORATION BONDS

1. Bonds shall be issued in such amounts in denominations of five pounds and multiples of five pounds and for such periods not being less than seven years as the Corporation may determine.

2. (a) Bonds may be issued at such price and at such rates of interest as the Corporation may from time to time determine :

Provided that bonds shall not be issued at a lower price than par except with the consent of the Minister.

(b) The nominal amount of bonds issued shall not exceed in the aggregate according to the price of issue such amounts as will together produce the actual amount of money for the time being authorised to be borrowed by the Corporation.

(c) Where a bond has been issued at a price lower than par so much of the issue as represents the difference between the price of the bond as issued and its nominal value shall be treated as a loan authorised by a statutory borrowing power and repayable out of the revenue of the Corporation on or before the date for repayment specified in the certificate issued in respect of the bond.

3. Bonds (unless the same shall have been previously cancelled by purchase in the open market or by agreement with the bondholder) shall be repayable at par at the office of the treasurer on the dates specified in the certificates issued in respect of the bonds and no interest shall be payable thereon in respect of any period after the date upon which the bond is repayable.

4.—(1) The treasurer shall keep a register of all persons who are holders for the time being of bonds.

(2) The register shall contain the following particulars :—

(a) The name address and description of each holder a statement of the denomination of the bonds held by him the price at which and the periods for which they are issued and the numbers and dates of the certificates issued to him as hereinafter provided ;

(b) The date of registration of each holder and the date on which he ceased to be so registered.

3RD SCH.
—cont.

(3) The register shall be prima facie evidence of any matter entered therein in accordance with the provisions of this Act and of the title of the persons entered therein as holders of bonds.

5.—(1) The Corporation shall issue to each holder of a bond a certificate in respect thereof duly numbered and dated and specifying the denomination of the bond and the period for which it is issued.

(2) If a certificate is worn out or damaged the Corporation on the production thereof may cancel it and issue a new certificate in lieu thereof.

(3) If a certificate is lost or destroyed the Corporation on proof thereof to their satisfaction and if they so require on receiving an indemnity against any claims in respect thereof may issue a new certificate in lieu of the certificate lost or destroyed.

(4) An entry of the issue of a substituted certificate shall be made in the register.

(5) A certificate shall be in the following form or in a form substantially to the like effect:—

No.....

Date.....

BOROUGH OF ROYAL LEAMINGTON SPA

LEAMINGTON CORPORATION BONDS

.....per centum Leamington Corporation bond repayable at
par on the.....19..... at the.....

This is to certify that.....
of.....
is the registered holder of a Corporation bond for.....
pounds (£.....) issued by the mayor aldermen and burgesses
of the borough of Royal Leamington Spa under the Leamington
Corporation Act 1952 at.....

The corporate seal of the Mayor
aldermen and burgesses of
the borough of Royal Leam-
ington Spa was hereunto
affixed in the presence of

6. The certificate shall be prima facie evidence of the title of the person therein named his executors administrators or assigns to the bond therein specified but the want of a certificate if accounted for to the satisfaction of the Corporation shall not prevent the holder of the bond from disposing of and transferring the bond.

7.—(1) The transfer of a bond shall be by deed in the following form or in a form substantially to the like effect:—

3RD SCH.
—cont.

FORM OF DEED OF TRANSFER
LEAMINGTON CORPORATION BONDS

I.....
in consideration of the sum of.....
paid by.....
(hereinafter called "the transferee") do hereby assign and
transfer to the transferee.....
To hold unto the transferee his executors administrators and
assigns subject to the several conditions on which I held the
same immediately before the execution hereof and I the trans-
feree do hereby agree to accept and take the said.....
.....subject to the conditions aforesaid.

As witness our hands and seals this.....day of.....
nineteen hundred and.....

(2) A bond may be transferred in whole or in part so however
that any part transferred shall not be for an amount other than an
amount for which a bond may be issued by the Corporation.

(3) The deed of transfer shall be delivered to and retained by the
Corporation and the Corporation shall enter a note thereof in a
book to be called the "Register of Transfers of Leamington Corpora-
tion bonds" (hereinafter called "the register") and shall endorse on
the deed of transfer a notice of that entry.

(4) The Corporation shall upon receipt of the deed of transfer
duly executed and properly stamped together with the certificate
issued in respect of the bond enter the name of the transferee in
the register and shall issue a new certificate or certificates to the
transferee or to the transferor and transferee as the case may require.

(5) Until the deed of transfer and the certificate have been delivered
to the Corporation as aforesaid the Corporation shall not be affected
by the transfer and the transferee shall not be entitled to receive
any payment of interest on the bond.

(6) The Corporation before registering a transfer of a bond may
if they think fit require evidence by statutory declaration or otherwise
of the title of any person claiming to make the transfer.

8. The Corporation may close the register for a period not exceed-
ing thirty days immediately before the thirty-first day of March and
the thirtieth day of September respectively in any year and notwith-
standing the receipt by the Corporation during those periods of any
deed of transfer the half-yearly payment of interest next falling due
may be made to the persons registered as holders of bonds on the
date of the closing of the register.

9.—(1) Any person becoming entitled to a bond by reason of the
death or bankruptcy of a holder or by any lawful means other than
a transfer may by the production of such evidence of title as the

3RD SCH.
—cont.

Corporation may require either be registered as holder of the bond or instead of being himself registered may make such transfer of the bond as the holder could have made and the Corporation shall issue a certificate accordingly.

(2) Until such evidence as aforesaid has been furnished to the Corporation the Corporation shall not be affected by the transmission of the bond and no person claiming by virtue thereof shall be entitled to receive any payment of interest thereon.

(3) Where two or more persons are registered as holders of a bond they shall be deemed to be joint holders with right of survivorship between them.

10.—(1) Unless the holder of a bond otherwise requests the Corporation may pay the interest thereon by posting a warrant to the holder at his address as shown in the register.

(2) The posting by the Corporation of a letter containing an interest warrant addressed to a holder as aforesaid shall as respects the liability of the Corporation be equivalent to the delivery of the warrant to the holder himself.

11. The Corporation before paying any interest on any bonds may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming a right to receive the interest.

12. The production to the Corporation of any document which is by law sufficient evidence of probate of the will or letters of administration of the estate or confirmation as executor of a deceased person having been granted to some person shall notwithstanding anything in this schedule be accepted by the Corporation as sufficient evidence of the grant.

THE FOURTH SCHEDULE

ENACTMENTS REPEALED

The Act passed in 1825 entitled “An Act for paving or flagging lighting cleansing watching regulating and improving the town of Leamington Priors in the county of Warwick”—

Sections L LII LIV to LXI LXXXII to XCIII XCV to XCVII CV CVII CIX to CXI CXXII CXXXVIII CLVI CLVII CLXV and CLXVI.

The Act passed in 1843 entitled “An Act for amending and enlarging the powers and provisions of an Act for paving or flagging lighting cleansing watching regulating and improving the town of Leamington Priors in the county of Warwick and for establishing a market therein”—

Sections XLVII LXXIII LXXV LXXVI LXXX to CXXII CXXV to CXXXI CXLIV CXLV CLXXI and CLXXIII.

15 & 16 GEO. 6 *Leamington Corporation* Ch. xvi
 & 1 ELIZ. 2 *Act, 1952*

Leamington Corporation Act 1896—

Sections 16 to 20 22 23 25 26 29 to 31 34 to 43 45 to 48 82 to
 84 86 to 98 100 to 103 and 110.

4TH SCH.
 —cont.

Leamington Corporation Act 1902—

Sections 18 to 24 26 28 to 30 33 to 41 43 to 54 56 61 to 76.

Leamington (Amendment of Local Enactments) Order 1951—

The whole Order.

*Table of Statutes referred to in this Act other than those referred to in the
 First Schedule*

Short title	Session and chapter
Lands Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 18.
Public Health Act 1875 ...	38 & 39 Vict. c. 55.
Local Loans Act 1875 ...	38 & 39 Vict. c. 83.
Telegraph Act 1878 ...	41 & 42 Vict. c. 76.
Electric Lighting Act 1882... ..	45 & 46 Vict. c. 56.
Public Health (Buildings in Streets) Act 1888 ...	51 & 52 Vict. c. 52.
Lunacy Act 1890 ...	53 & 54 Vict. c. 5.
Public Health Acts Amendment Act 1890 ...	53 & 54 Vict. c. 59.
Stamp Act 1891 ...	54 & 55 Vict. c. 39.
Private Street Works Act 1892 ...	55 & 56 Vict. c. 57.
Local Government Act 1894 ...	56 & 57 Vict. c. 73.
Finance Act 1899 ...	62 & 63 Vict. c. 9.
Finance Act 1907 ...	7 Edw. 7. c. 13.
Public Health Acts Amendment Act 1907 ...	7 Edw. 7. c. 53.
Cinematograph Act 1909 ...	9 Edw. 7. c. 30.
Licensing (Consolidation) Act 1910 ...	10 Edw. 7. & 1 Geo. 5. c. 24.
Acquisition of Land (Assessment of Compensation) Act 1919 ...	9 & 10 Geo. 5. c. 57.
Increase of Rent and Mortgage Interest (Restrictions) Act 1920 ...	10 & 11 Geo. 5. c. 17.
Land Charges Act 1925 ...	15 & 16 Geo. 5. c. 22.
Administration of Estates Act 1925 ...	15 & 16 Geo. 5. c. 23.
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